

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 893

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO CODIFIER'S CORRECTIONS; AMENDING THE HEADING FOR CHAPTER 45, TITLE 18, IDAHO CODE, TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 18-4501, IDAHO CODE, TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 18-4503, IDAHO CODE, TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 90, TITLE 18, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 252, LAWS OF 2025, TO REDESIGNATE THE CHAPTER; AMENDING SECTION 19-307, IDAHO CODE, TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 19-4705, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-132, IDAHO CODE, TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 33-3732, IDAHO CODE, AS ENACTED BY SECTION 2, CHAPTER 70, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING CHAPTER 68, TITLE 33, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 55, LAWS OF 2025, TO REDESIGNATE THE CHAPTER; AMENDING SECTION 39-309, IDAHO CODE, TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 39-1102, IDAHO CODE, TO MAKE CODIFIER'S CORRECTIONS; AMENDING SECTION 39-1106, IDAHO CODE, TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 39-1392a, IDAHO CODE, TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 39-3340, IDAHO CODE, TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 39-4117, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 221, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING SECTION 49-401A, IDAHO CODE, TO REMOVE A CODE REFERENCE; AMENDING SECTION 49-402, IDAHO CODE, TO MAKE A CODIFIER'S CORRECTION; AMENDING SECTION 49-402D, IDAHO CODE, TO MAKE A CODIFIER'S CORRECTION AND TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 49-420T, IDAHO CODE, AS ENACTED BY SECTION 2, CHAPTER 172, LAWS OF 2025, TO REDESIGNATE THE SECTION AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 54-1421, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 187, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING SECTION 54-5802, IDAHO CODE, TO MAKE A CODIFIER'S CORRECTION AND TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 55-103, IDAHO CODE, TO MAKE A CODIFIER'S CORRECTION; AMENDING SECTION 55-3203, IDAHO CODE, TO REMOVE SURPLUS VERBIAGE; AMENDING SECTION 56-1003, IDAHO CODE, TO MAKE CODIFIER'S CORRECTIONS; AMENDING SECTION 56-1602, IDAHO CODE, TO MAKE A TECHNICAL CORRECTION; AMENDING CHAPTER 22, TITLE 56, IDAHO CODE, AS ENACTED BY SECTION 13, CHAPTER 84, LAWS OF 2025, TO REDESIGNATE THE CHAPTER; AMENDING SECTION 57-829, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 256, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING SECTION 58-307, IDAHO CODE, TO REMOVE OBSOLETE LANGUAGE; AMENDING SECTION 63-3622XX, IDAHO CODE, AS ENACTED BY SECTION 1, CHAPTER 86, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING SECTION 67-827A, IDAHO CODE, TO MAKE CODIFIER'S CORRECTIONS; AMENDING SECTION 67-2362, IDAHO CODE, AS ENACTED BY SECTION 3, CHAPTER 6, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING SECTION 67-5242, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 67-7602B, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 67-9407, IDAHO CODE, AS ENACTED BY SECTION 2, CHAPTER 83, LAWS OF 2025, TO REDESIGNATE THE SECTION; AMENDING CHAPTER 98, TI-

TLE 67, IDAHO CODE, AS ENACTED BY SECTION 2, CHAPTER 107, LAWS OF 2025, TO REDESIGNATE THE CHAPTER; AMENDING SECTION 72-1330A, IDAHO CODE, AS ENACTED BY SECTION 17, CHAPTER 29, LAWS OF 2025, TO REDESIGNATE THE SECTION; AND DECLARING AN EMERGENCY, PROVIDING AN EFFECTIVE DATE, AND PROVIDING A SUNSET DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That the Heading for Chapter 45, Title 18, Idaho Code, be, and the same is hereby amended to read as follows:

CHAPTER 45
KIDNAPING KIDNAPPING

SECTION 2. That Section 18-4501, Idaho Code, be, and the same is hereby amended to read as follows:

18-4501. KIDNAPING KIDNAPPING DEFINED. Every person who wilfully:

1. Seizes, confines, inveigles or kidnaps another, with intent to cause him, without authority of law, to be secretly confined or imprisoned within this state, or to be sent out of this state, or in any way held to service or kept or detained against his will; or,
2. Leads, takes, entices away or detains a child under the age of sixteen (16) years, with intent to keep or conceal it from its custodial parent, guardian or other person having lawful care or control thereof, or with intent to steal any article upon the person of the child; or,
3. Abducts, entices or by force or fraud unlawfully takes or carries away another at or from a place without the state, or procures, advises, aids or abets such an abduction, enticing, taking or carrying away, and afterwards sends, brings, has or keeps such person, or causes him to be kept or secreted within this state; or,
4. Seizes, confines, inveigles, leads, takes, entices away or kidnaps another against his will to extort money, property or any other thing of value or obtain money, property or reward or any other thing of value for the return or disposition of such person is guilty of kidnaping kidnapping.

SECTION 3. That Section 18-4503, Idaho Code, be, and the same is hereby amended to read as follows:

18-4503. SECOND DEGREE KIDNAPING KIDNAPPING WHEN NOT FOR RANSOM. Every other kidnaping kidnapping committed shall be kidnaping kidnapping in the second degree.

SECTION 4. That Chapter 90, Title 18, Idaho Code, as enacted by Section 1, Chapter 252, Laws of 2025, be, and the same is hereby amended to read as follows:

CHAPTER ~~90~~ 91
ADVERTISING ILLEGAL DRUGS

~~18-9001~~ 18-9101. ADVERTISING ILLEGAL DRUGS PROHIBITED. (1) Any person who willfully publishes any commercial advertisement, in any medium,

1 within the state of Idaho for marijuana, narcotics, or other psychoactive
 2 substances that are illegal under Idaho Code and illegal under the laws of
 3 the jurisdiction where the marijuana, narcotics, or other psychoactive sub-
 4 stances are provided, including federal, state, or local laws, is guilty of
 5 a misdemeanor, punishable in accordance with section 18-113, Idaho Code,
 6 with a fine of five hundred dollars (\$500) to be imposed for each violation.
 7 Each day in which a violation of this section exists shall be considered a
 8 separate offense.

9 (2) As used in this section, "commercial advertisement" means an ad-
 10 vertisement that encourages consumers to engage with products or services to
 11 benefit a commercial enterprise.

12 SECTION 5. That Section 19-307, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 19-307. ~~KIDNAPING~~ KIDNAPPING AND SIMILAR OFFENSES. In any case where a
 15 person:

16 1. Seizes, confines, inveigles or kidnaps another, with intent to cause
 17 him, without authority of law, to be secretly confined or imprisoned within
 18 this state, or to be sent out of this state, or in any way held to service or
 19 kept or detained against his will; or

20 2. Leads, takes, entices away or detains a child under the age of six-
 21 teen (16) years, with intent to keep or conceal it from its custodial parent,
 22 guardian or other person having lawful care or control thereof, or with in-
 23 tent to steal any article upon the person of the child; or

24 3. Abducts, entices or by force or fraud unlawfully takes or carries
 25 away another at or from a place without the state, or procures, advises, aids
 26 or abets such an abduction, enticing, taking or carrying away, and after-
 27 wards sends, brings, has or keeps such person, or causes him to be kept or se-
 28 creted within this state; or

29 4. Seizes, confines, inveigles, leads, takes, entices away or kidnaps
 30 another against his will to extort money, property or any other things of
 31 value or obtain money, property or reward or any other thing of value for the
 32 return or disposition of such person; or

33 5. Inveigles or entices any unmarried person of previous chaste charac-
 34 ter, under the age of eighteen (18) years, into any house of ill-fame, or of
 35 assignation, or elsewhere, for the purpose of prostitution, or to have il-
 36 licit carnal connection with any other person; and every person who aids or
 37 assists in such inveiglement or enticement; or

38 6. Takes away any person under the age of eighteen (18) years from his or
 39 her father, mother, guardian, or other person having the legal charge of that
 40 person, without their consent, for the purpose of prostitution;

41 Venue is in the county in which the offense is committed, or out of which
 42 the person upon whom the offense was committed may, in the commission of the
 43 offense, have been brought, or in which an act was done by the defendant in
 44 instigating, procuring, promoting, or aiding in the commission of the of-
 45 fense, or in abetting the parties concerned therein.

46 SECTION 6. That Section 19-4705, Idaho Code, be, and the same is hereby
 47 amended to read as follows:

1 19-4705. PAYMENT OF FINES AND FORFEITURES -- SATISFACTION OF JUDGMENT
2 -- DISPOSITION -- APPORTIONMENT. (1) Except as otherwise provided in subsec-
3 tion (2) of this section:

4 (a) All fines and forfeitures collected pursuant to the judgment of
5 any court of the state shall be remitted to the court in which the judg-
6 ment was rendered. The judgment shall then be satisfied by entry in the
7 docket of the court. The clerk of the court shall daily remit all fines
8 and forfeitures to the county auditor, who shall at the end of each month
9 apportion the proceeds according to the provisions of this chapter.
10 Other existing laws regarding the disposition of fines and forfeitures
11 are hereby repealed to the extent such laws are inconsistent with the
12 provisions of this chapter, except as provided in section 49-1013(5),
13 Idaho Code.

14 (b) Fines and forfeitures remitted for violations of fish and game
15 laws shall be apportioned two and one-half percent (2 1/2%) to the
16 state treasurer for deposit in the state general fund, ten percent
17 (10%) to the search and rescue account, twenty-two and one-half percent
18 (22 1/2%) to the district court fund, and sixty-five percent (65%) to
19 the public shooting range fund as provided in section 36-418, Idaho
20 Code.

21 (c) Fines and forfeitures remitted for violations of state motor ve-
22 hicle laws, for violation of state driving privilege laws, and for
23 violation of state laws prohibiting driving while under the influence
24 of alcohol, drugs or any other intoxicating substances shall be appor-
25 tioned ten percent (10%) to the state treasurer, of which eighty-six
26 percent (86%) shall be deposited to the state general fund and fourteen
27 percent (14%) shall be deposited to the peace officers standards and
28 training fund authorized in section 19-5116, Idaho Code, forty-five
29 percent (45%) to the state treasurer for deposit in the highway distri-
30 bution account, twenty-two and one-half percent (22 1/2%) to the dis-
31 trict court fund, and twenty-two and one-half percent (22 1/2%) to the
32 state treasurer for deposit in the public school income fund; provided,
33 however, that fines and forfeitures remitted for violation of state mo-
34 tor vehicle laws, for violation of state driving privilege laws, and for
35 violation of state laws prohibiting driving while under the influence
36 of alcohol, drugs or any other intoxicating substances, where an arrest
37 is made or a citation is issued by a city law enforcement official or by
38 a law enforcement official of a governmental agency under contract to
39 provide law enforcement services for a city, shall be apportioned ten
40 percent (10%) to the state treasurer, of which eighty-six percent (86%)
41 shall be deposited to the state general fund and fourteen percent (14%)
42 shall be deposited to the peace officers standards and training fund
43 authorized in section 19-5116, Idaho Code, and ninety percent (90%) to
44 the city whose officer made the arrest or issued the citation.

45 (d) Fines and forfeitures remitted for violation of any state law not
46 involving fish and game laws, motor vehicle laws, state driving privi-
47 lege laws, or state laws prohibiting driving while under the influence
48 of alcohol, drugs or any other intoxicating substances shall be appor-
49 tioned ten percent (10%) to the state treasurer, of which eighty-six
50 percent (86%) shall be deposited to the state general fund and fourteen

1 percent (14%) shall be deposited to the peace officers standards and
2 training fund authorized in section 19-5116, Idaho Code, and ninety
3 percent (90%) to the district court fund of the county in which the vio-
4 lation occurred.

5 (e) Fines and forfeitures remitted for violation of county ordinances
6 shall be apportioned ten percent (10%) to the state treasurer, of which
7 eighty-six percent (86%) shall be deposited to the state general fund
8 and fourteen percent (14%) shall be deposited to the peace officers
9 standards and training fund authorized in section 19-5116, Idaho Code,
10 and ninety percent (90%) to the district court fund of the county whose
11 ordinance was violated.

12 (f) Fines and forfeitures remitted for violation of city ordinances
13 shall be apportioned ten percent (10%) to the state treasurer, of which
14 eighty-six percent (86%) shall be deposited to the state general fund
15 and fourteen percent (14%) shall be deposited to the peace officers
16 standards and training fund authorized in section 19-5116, Idaho Code,
17 and ninety percent (90%) to the city whose ordinance was violated.

18 (g) Fines and forfeitures remitted for violations not specified in this
19 chapter shall be apportioned ten percent (10%) to the state treasurer,
20 of which eighty-six percent (86%) shall be deposited to the state gen-
21 eral fund and fourteen percent (14%) shall be deposited to the peace of-
22 ficers standards and training fund authorized in section 19-5116, Idaho
23 Code, and ninety percent (90%) to the district court fund of the county
24 in which the violation occurred, except in cases where a duly designated
25 officer of any city police department or city law enforcement official
26 made the arrest for any such violation, in which case ninety percent
27 (90%) shall be apportioned to the city whose officer made the arrest.

28 (h) Fines and forfeitures remitted for violations involving any of the
29 provisions of chapter 71, title 67, Idaho Code, shall be apportioned ten
30 percent (10%) to the state treasurer, of which eighty-six percent (86%)
31 shall be deposited to the state general fund and fourteen percent (14%)
32 shall be deposited to the peace officers standards and training fund au-
33 thorized in section 19-5116, Idaho Code, and ninety percent (90%) to the
34 general fund of the county or city whose law enforcement official issued
35 the citation.

36 (i) Fines and forfeitures remitted for violations of overweight laws
37 as provided in section 49-1013(3), Idaho Code, shall be deposited one
38 hundred percent (100%) into the highway distribution account.

39 (j) Fines remitted for violations of section 18-7008, Idaho Code, shall
40 be apportioned ten percent (10%) to the district court fund, sixty-five
41 percent (65%) to the county where the trespass occurred for appropria-
42 tion to the sheriff's office, and twenty-five percent (25%) to the Idaho
43 rangeland resources commission for expanded education programs regard-
44 ing private property rights and land user responsibility.

45 (k) Fines remitted for violations of section ~~18-9001~~ 18-9101, Idaho
46 Code, shall be apportioned ninety percent (90%) to the county where the
47 violation occurred for appropriation to the sheriff's office and ten
48 percent (10%) to the district court fund of the county where the viola-
49 tion occurred.

1 (2) Any fine or forfeiture remitted for any misdemeanor violation for
 2 which an increase in the maximum fine became effective on or after July 1,
 3 2005, shall be apportioned as follows:

4 (a) Any funds remitted, up to the maximum amount that could have been
 5 imposed before July 1, 2005, as a fine for the misdemeanor violation
 6 shall be apportioned according to the applicable provisions of subsec-
 7 tion (1) of this section; and

8 (b) Any other funds remitted, in excess of the maximum amount that could
 9 have been imposed before July 1, 2005, as a fine for the misdemeanor vi-
 10 olation shall be remitted to the state treasurer and shall be deposited
 11 in the drug court, mental health court and family court services fund as
 12 set forth in section 1-1625, Idaho Code.

13 (3) As used in this section, the term "city law enforcement official"
 14 shall include an official of any governmental agency providing law enforce-
 15 ment services to a city in accordance with the terms of a contract or agree-
 16 ment, when such official makes the arrest or issues a citation within the ge-
 17 ographical limits of the city and when the contract or agreement provides for
 18 payment to the city of fines and forfeitures resulting from such service.

19 SECTION 7. That Section 33-132, Idaho Code, be, and the same is hereby
 20 amended to read as follows:

21 33-132. LOCAL SCHOOL BOARDS -- INTERNET FILTERING REQUIRED. (1) As
 22 a condition for receiving moneys from the state general fund, each local
 23 school district and public charter school shall have internet content fil-
 24 ters that shall be included as part of any wireless internet access made
 25 available to children. The content filters shall:

26 (a) Prohibit and prevent the use of school computers and other school
 27 owned technology-related services from sending, receiving, viewing, or
 28 downloading materials that are deemed to be harmful to minors, as de-
 29 fined by section 18-1514, Idaho Code; and

30 (b) Filter or block internet access to obscene materials, materials
 31 harmful to minors, and materials that depict the sexual exploitation of
 32 a minor, as defined in chapter 15, title 18, Idaho Code.

33 (2) The filtering solution shall be configurable to school district and
 34 public charter school policies regarding acceptable, age appropriate inter-
 35 net content. The content filtering shall include the ability:

36 (a) For each school district and public charter school to manage its
 37 own filtering policies, including the decision to block specific cate-
 38 gories of content and to maintain its own whitelist and blacklist over-
 39 rides;

40 (b) To provide individual school district and public charter school
 41 utilization and filtering reports, including the most frequently
 42 visited websites, the most frequently visited categories, the most fre-
 43 quently blocked websites, the most frequently used search terms, and
 44 the top authenticated users;

45 (c) To audit all changes to content filtering; and

46 (d) For all reporting and management of content filtering to be avail-
 47 able through any internet-connected browser and efficiently perform
 48 all content filtering functions.

(3) A school district or public charter school may offer digital or online library resources to students in kindergarten through grade 12 only if the vendor or other person or entity providing the resources verifies that all the resources will comply with the provisions of subsection (4) of this section.

(4) Digital or online library resources offered by school districts or public charter schools to students in kindergarten through grade 12 shall have safety policies and technology protection measures that:

(a) Prohibit and prevent a user from sending, receiving, viewing, or downloading materials that are deemed to be harmful to minors, as defined in section 18-1514, Idaho Code; and

(b) Filter or block access to obscene materials, materials harmful to minors, and materials that depict the sexual exploitation of a minor, as defined in chapter 15, title 18, Idaho Code.

(5) Notwithstanding any contract provision to the contrary, if a provider of digital or online library resources fails to comply with the requirements of subsection (4) of this section, the school district or public charter school may withhold further payments, if any, to the provider pending verification of compliance with the provisions of subsection (4) of this section.

(6) If a provider of digital or online library resources fails to timely verify that the provider is in compliance with the requirements of subsection (4) of this section, the school district or public charter school may consider the provider's act of noncompliance a breach of contract.

(7) School districts and public charter ~~Schools~~ schools shall have policies that:

(a) Establish appropriate disciplinary measures to be taken against persons violating the policy provided for in this section;

(b) Include a component of internet safety for students that is integrated into the school district's or public charter school's instructional program; and

(c) Inform the public that administrative procedures have been adopted to enforce the policy provided for in this section and to handle complaints about such enforcement, and that such procedures are available for review at the school district or public charter school office.

(8) The policy provided for in subsection (1) of this section may include terms, conditions, and requirements deemed appropriate by the school district's board of trustees or the public charter school's governing board, including but not limited to requiring written parental authorization for internet use by minors or differentiating acceptable uses among elementary, middle, and high school students.

(9) The district's superintendent is hereby authorized to take reasonable measures to implement and enforce the provisions of this section.

SECTION 8. That Section 33-3732, Idaho Code, as enacted by Section 2, Chapter 70, Laws of 2025, be, and the same is hereby amended to read as follows:

~~33-3732~~ 33-3733. TITLE IX COMPLIANCE IN HIGHER EDUCATION. (1) For the purposes of this section:

(a) "Institution of higher education" means any public postsecondary institution, including but not limited to universities, colleges, and community colleges, operating within the state of Idaho that receives federal financial assistance.

(b) "Office for civil rights" means the federal agency responsible for enforcing title IX compliance within educational institutions.

(c) "President" means the chief executive officer or equivalent highest-ranking official of an institution of higher education in the state of Idaho, without regard to the specific title of such individual.

(d) "Title IX" means title IX of the education amendments of 1972 (20 U.S.C. 1681 et seq.), and all applicable federal regulations duly promulgated by any federal department or agency pursuant to the same.

(e) "Title IX compliance" means the policies, procedures, actions, and investigations required by title IX to ensure that an institution of higher education is in compliance with title IX.

(2) The president of each institution of higher education in Idaho shall have the exclusive authority and duty to implement all title IX compliance. When necessary, the president of an institution of higher education may delegate specific tasks or duties related to title IX to designated staff reporting to the office of the president, provided that the president approves any final decision or action on any title IX related task or duty. To carry out this provision, the president of each institution of higher education in Idaho shall:

(a) Establish policies to implement the requirements of title IX and corresponding binding federal regulations issued by the United States department of education and the office for civil rights. Such policies shall be narrowly tailored to meet only the minimum requirements of title IX; and

(b) Ensure that all complaints filed with the institution of higher education pursuant to title IX are promptly investigated in accordance with title IX regulations. The president shall review and approve any decisions regarding sanctions, accommodations, or disciplinary actions arising from title IX complaints.

(3) The president of each institution of higher education shall prepare and submit a report to the Idaho state board of education and the Idaho legislative services office no later than July 1 of each year, which report shall include:

(a) The number of title IX complaints received during the previous academic year. The report shall also include the number of investigations conducted and a description of the outcomes of all investigations;

(b) Copies of all title IX-related policies and procedures of the institution of higher education, which shall conspicuously highlight any changes made to such policies and procedures during the previous year;

(c) A summary of interim measures taken to protect complainants and the accused during the time an investigation is pending; and

(d) A summary of all corrective actions taken to address failures in title IX compliance.

SECTION 9. That Chapter 68, Title 33, Idaho Code, as enacted by Section 1, Chapter 55, Laws of 2025, be, and the same is hereby amended to read as follows:

CHAPTER ~~68~~ 69
DISTRACTION-FREE LEARNING

~~33-6801~~ 33-6901. DEFINITIONS. As used in this chapter:

(1) "Electronic communications device" means any device that uses electronic signals to create, transmit, and receive information, including cellular telephones.

(2) "School building" means any structure in which any instruction, extracurricular activities, or training provided by a school is conducted.

(3) "School grounds or premises" means the parcel of real property on which any school building is located and any other parcel of real property that is owned or leased by the local school district or public charter school on which any instruction, extracurricular activities, or training of the school is conducted.

(4) "School hours" means the designated period of the day when school is open and in operation.

~~33-6802~~ 33-6902. DISTRACTION-FREE LEARNING. (1) No later than December 31, 2025, every local school board and public charter school shall adopt a policy governing the use of electronic communications devices by students in school buildings and on school grounds or premises during school hours. The policy shall:

(a) Emphasize that student use of electronic communications devices be as limited as possible in school buildings and on school grounds or premises during school hours; and

(b) Reduce distractions related to the use of electronic communications devices in classroom settings during school hours.

(2) The provisions of this section shall not be construed to require a local school board or public charter school to adopt a policy that prohibits all use of electronic communications devices by students. However, local school boards and public charter schools may adopt a policy prohibiting students from carrying electronic communications devices in school buildings and on school grounds or premises during school hours. A local school board or public charter school that adopts such policy shall be considered to have met the requirement to adopt a policy under this section.

(3) A policy adopted pursuant to the provisions of this section may provide for exceptions to the use of electronic communications devices, including but not limited to accommodations for individualized education programs. Each policy shall specify any disciplinary measures for violations of the policy.

(4) Every local school board and public charter school shall make the policy it adopts pursuant to the provisions of this section publicly available and display such policy prominently on its public website.

SECTION 10. That Section 39-309, Idaho Code, be, and the same is hereby amended to read as follows:

39-309. PAYMENT FOR TREATMENT -- FINANCIAL ABILITY OF PATIENTS. (1) An individual receiving substance use disorder services through the department shall be responsible for paying for the services received. The financial re-

1 sponsibility for each service shall be based on the individual's ability to
2 pay as determined by the department.

3 (2) If treatment is provided by the department and the patient has not
4 paid the charge for the treatment, the department is entitled to any income
5 or payment received by the patient or to which he may be entitled for the ser-
6 vices rendered, and to any payment from any public or private source avail-
7 able to the department because of the treatment provided to the patient.

8 (3) A patient in an approved treatment facility, or the estate of the
9 patient, or a person obligated to provide for the cost of treatment and hav-
10 ing sufficient financial ability, is liable to the department for the cost of
11 transportation, maintenance and treatment of the patient therein in accor-
12 dance with rates established by the department. ~~(4) may~~

13 SECTION 11. That Section 39-1102, Idaho Code, be, and the same is hereby
14 amended to read as follows:

15 39-1102. DEFINITIONS. As used in this chapter:

16 (1) "Board" means the Idaho board of health and welfare.

17 (2) "Child" means a person less than thirteen (13) years of age.

18 (3) "Daycare" means care and supervision provided for compensation
19 during part of a twenty-four (24) hour day, for a child or children not
20 related by blood, marriage or legal guardianship to the person or persons
21 providing the care, in a place other than the child's or children's own home
22 or homes.

23 (4) "Daycare center" means a place or facility providing daycare for
24 compensation for thirteen (13) or more children.

25 (5) "Daycare facility" means a place or facility providing daycare
26 services for compensation to seven (7) or more children not related to the
27 provider.

28 (6) "Department" means the Idaho department of health and welfare.

29 (7) "Employee" means any person working for compensation in a facility
30 that provides daycare.

31 (8) "Family daycare home" means a home, place, or facility providing
32 daycare for six (6) or fewer children.

33 (9) "Group daycare facility" means a home, place, or facility providing
34 daycare for seven (7) to twelve (12) children.

35 (10) "Group size" means the maximum number of children in one (1) group
36 or classroom.

37 (11) "Mixed age group" means a care group that includes children of mul-
38 tiple ages.

39 (12) "Operator" means a person who operates or maintains a licensed day-
40 care facility.

41 (13) "Owner" means a person, group of individuals, or entity that has
42 legal control and authority over a daycare business.

43 (14) "Provider" means a person who provides care and supervision at a
44 daycare facility and is included in the child:staff ratio.

45 (15) "Ratio" means the number of staff required to supervise a certain
46 number of children.

47 (16) "Single age group" means a care group that includes children of
48 similar age.

1 (17) "Staff" means anyone who is sixteen (16) years of age or older who
 2 is employed by a daycare facility to provide care and supervision. "Staff"
 3 includes operators, owners, and providers.

4 ~~(14)~~ (18) "Supervision" means:

5 (a) For a child less than five (5) years of age, a provider is within
 6 sight or normal hearing range of the child and near enough to render im-
 7 mediate assistance to the child;

8 (b) For a child five (5) years of age and older, a provider is within
 9 sight or normal hearing range of the child as appropriate to the child's
 10 individual age, needs, and capabilities; and

11 (c) Notwithstanding paragraph (b) of this subsection, for all children
 12 while sleeping, swimming or engaging in other water activity involving
 13 a pool, hot tub, or other body of water, or on field trips or activities
 14 away from the facility, a provider is within sight and normal hearing
 15 range of the child.

16 ~~(15)~~ (18) (19) "Training" means continuing education in child develop-
 17 ment areas relating to child care.

18 SECTION 12. That Section 39-1106, Idaho Code, be, and the same is hereby
 19 amended to read as follows:

20 39-1106. ISSUANCE OF LICENSE -- RENEWAL. (1) Upon receipt of the com-
 21 pleted application, inspection certificates and the criminal history, the
 22 department shall, upon a finding of compliance with the standards set forth
 23 in this chapter, issue a basic daycare license to the applicant within sixty
 24 (60) days. The license shall be valid for two (2) years, unless suspended
 25 or revoked, and be posted in a conspicuous place at the daycare facility.
 26 ~~revoked or suspended~~

27 (2) The department shall send a renewal application to the owner of the
 28 daycare facility no later than ninety (90) days prior to the expiration of
 29 an existing license. The owner shall submit to the department the renewal
 30 application with the required renewal fee and a criminal history check prior
 31 to the expiration of the existing license. A complete criminal history check
 32 shall be provided for any new persons requiring a criminal history check in
 33 accordance with section 39-1105, Idaho Code.

34 (3) Criminal history checks on those persons under eighteen (18) years
 35 of age shall include a check of the juvenile justice records of adjudications
 36 of the magistrate division of the district court, county probation services
 37 and department records as authorized by the minor and his parent or guardian.

38 (4) The department shall maintain a list of all licensees for public
 39 use.

40 (5) Submission of a renewal application, fee and required criminal
 41 history check shall entitle the daycare facility owner to continue daycare
 42 services, subject to action by the department pursuant to section 39-1113,
 43 Idaho Code.

44 SECTION 13. That Section 39-1392a, Idaho Code, be, and the same is
 45 hereby amended to read as follows:

46 39-1392a. DEFINITIONS. The following terms shall have the following
 47 meanings when used in this section:

1 (1) "Emergency medical services personnel" means emergency medical
2 services providers and ambulance-based clinicians licensed pursuant to
3 chapter 9, title 46, Idaho Code.

4 (2) "Group medical practice" means a partnership, corporation, limited
5 liability company, or other association formed for the purpose of offering
6 health care services through physicians and other licensed or otherwise au-
7 thorized health care providers who are partners, shareholders, members, em-
8 ployees, or contractors of such group medical practice.

9 (3) "Health care organization" means a hospital, in-hospital medical
10 staff committee, medical society, managed care organization, licensed emer-
11 gency medical service, group medical practice, residential care facility or
12 skilled nursing facility.

13 (4) "Hospital" means a facility in Idaho as defined in section 39-1301,
14 Idaho Code. ~~39-1313~~

15 (5) "In-hospital medical staff committees" means any individual doctor
16 who is a hospital staff member, or any hospital employee, or any group of such
17 doctors and/or hospital employees, who are duly designated a committee by
18 hospital staff bylaws, by action of an organized hospital staff, or by action
19 of the board of directors of a hospital, and which committee is authorized
20 by said bylaws, staff or board of directors, to conduct research or study of
21 hospital patient cases, or of medical questions or problems using data and
22 information from hospital patient cases.

23 (6) "Licensed emergency medical service" means an ambulance service or
24 a nontransport service licensed pursuant to chapter 9, title 46, Idaho Code.

25 (7) "Managed care organization" means a public or private person or or-
26 ganization that offers a managed care plan.

27 (8) "Managed care plan" means a contract of coverage given to an indi-
28 vidual, family or group of covered individuals pursuant to which a member is
29 entitled to receive a defined set of health care benefits through an orga-
30 nized system of health care providers in exchange for defined consideration
31 and which requires the member to use, or creates financial incentives for the
32 member to use, health care providers owned, managed, employed by or under
33 contract with the managed care organization.

34 (9) "Medical society" means any duly constituted, authorized and rec-
35 ognized professional society or entity made up of physicians licensed to
36 practice medicine in Idaho, having as its purpose the maintenance of high
37 quality in the standards of health care provided in Idaho or any region or
38 segment of the state, operating with the approval of the Idaho state board
39 of medicine, or any official committee appointed by the Idaho state board of
40 medicine.

41 (10) "Patient care records" means written or otherwise recorded, pre-
42 served and maintained records of the medical or surgical diagnostic, clini-
43 cal, or therapeutic care of any patient treated by or under the direction of
44 licensed professional personnel, including emergency medical services per-
45 sonnel, in every health care organization subject to this act, whether as an
46 inpatient or outpatient of the health care organization.

47 (11) "Peer review" means the collection, interpretation and analysis of
48 data by a health care organization for the purpose of bettering the system
49 of delivery of health care or to improve the provision of health care or to
50 otherwise reduce patient morbidity and mortality and improve the quality of

1 patient care. Peer review activities by a health care organization include,
2 without limitation:

3 (a) Credentialing, privileging or affiliating of health care providers
4 as members of, or providers for, a health care organization;

5 (b) Quality assurance and improvement, patient safety investigations
6 and analysis, patient adverse outcome reviews, and root-cause analysis
7 and investigation activities by a health care organization; and

8 (c) Professional review action, meaning an action or recommendation
9 of a health care organization which is taken or made in the conduct of
10 peer review, that is based on the competence or professional conduct of
11 an individual physician or emergency medical services personnel where
12 such conduct adversely affects or could adversely affect the health
13 or welfare of a patient or the physician's privileges, employment or
14 membership in the health care organization or in the case of emergency
15 medical services personnel, the emergency medical services personnel's
16 scope of practice, employment or membership in the health care organ-
17 ization.

18 (12) "Peer review records" means all evidence of interviews, reports,
19 statements, minutes, memoranda, notes, investigative graphs and compila-
20 tions and the contents thereof, and all physical materials relating to peer
21 review of any health care organization. "Peer review records" does not mean
22 or include patient care records; provided however, that the records relating
23 to the identification of which particular patient care records were selected
24 for, or reviewed, examined or discussed in peer review by a health care or-
25 ganization and the methodology used for selecting such records shall be con-
26 sidered peer review records.

27 (13) "Skilled nursing facility" means a facility licensed under chapter
28 13, title 39, Idaho Code, to provide skilled care to recipients.

29 SECTION 14. That Section 39-3340, Idaho Code, be, and the same is hereby
30 amended to read as follows:

31 39-3340. LICENSING. (1) Any person, firm, partnership, association,
32 governmental unit, or corporation within the state proposing to operate, es-
33 tablish, manage, conduct, or maintain a residential care or assisted living
34 facility in the state shall have a license issued by the licensing agency of
35 the department. A license is not transferable. The owner of the license has
36 ultimate responsibility for the operation of the facility.

37 (2) Each residential care or assisted living facility in the state re-
38 quires an administrator, properly licensed by the division of occupational
39 and professional licenses. The licensed administrator may perform the day-
40 to-day responsibilities at the facility or may delegate all day-to-day re-
41 sponsibilities to a facility manager. A licensed administrator may serve up
42 to three (3) multiple facilities and delegate all day-to-day responsibili-
43 ties to on-site managers.

44 (3) All facilities must be licensed by the department.

45 (a) Change of building ownership, new construction, or buildings being
46 converted to a facility shall be licensed, and the operator shall follow
47 the application procedures and obtain a license before commencing oper-
48 ation as a facility.

(b) When there is a change of operator or lessee in currently licensed buildings, the operator or lessee shall follow the licensing process for currently licensed buildings. Facilities shall submit requested licensing documents to the department. Any company or individual established in the state of Idaho with at least one (1) operating facility shall not be required to submit an updated copy of policies and procedures. The licensing process shall not require a fire life safety inspection prior to license issuance. Within one hundred eighty (180) days of license issuance fire life safety shall inspect and provide recommendations, if any, to the new operator or lessee.

(c) Any minor change of ownership of existing buildings shall be communicated to the department within sixty (60) days of the change.

(d) Exceptions to the provisions of this section may be made by the department for temporary management.

SECTION 15. That Section 39-4117, Idaho Code, as enacted by Section 1, Chapter 221, Laws of 2025, be, and the same is hereby amended to read as follows:

~~39-4117~~ 39-4119. LIVE VIRTUAL RE-INSPECTIONS. (1) Except as otherwise provided for in this section, the division and local governments shall be authorized to perform live virtual re-inspections at their discretion.

(2) When conducting a live virtual re-inspection pursuant to this section, the division or a local government shall, with respect to each re-inspection, verify the address or physical location of such re-inspection. Such verification may be made by showing the physical address or other identifying features of the location where the live virtual re-inspection is taking place.

(3) Neither the division nor local governments shall use live virtual re-inspections for structural inspections on buildings that are three (3) stories or greater.

(4) For purposes of this section:

(a) "Live virtual inspection" means a form of visual inspection that uses real time visual or electronic aids to allow an inspector who is enforcing a building code to perform an inspection without having to be physically present at the job site during the inspection.

(b) "Live virtual re-inspection" means a live virtual inspection performed following a previous inspection by an inspector who was physically present at the location subject to such re-inspection.

SECTION 16. That Section 49-401A, Idaho Code, be, and the same is hereby amended to read as follows:

49-401A. OWNER TO SECURE REGISTRATION FROM A COUNTY ASSESSOR OR THE DEPARTMENT. (1) Every owner of a motor vehicle, trailer or semitrailer who intends to operate the vehicle upon any highway in this state shall, before the same is so operated, apply to a county assessor or to the department or an agent of the department and obtain registration for vehicles pursuant to sections 49-402(1) through (3), 49-402A, 49-402B and 49-422, Idaho Code. All others shall be obtained from the department except as provided in subsection (2) of this section. Owners of vehicles specified in section 49-426,

Idaho Code, are exempt from the provisions of this section. Owners of vehicles operating on a temporary basis as provided in sections 49-431(3), and 49-432 and ~~49-433~~, Idaho Code, are exempt from the provisions of this section to the extent that the temporary permits in use are unexpired.

(2) Commercial vehicles in excess of twenty-six thousand (26,000) pounds gross weight, farm and noncommercial vehicles in excess of sixty thousand (60,000) pounds gross weight and all vehicles registered under section 49-435, Idaho Code, shall be registered by the department. All other commercial, farm and noncommercial vehicles and the vehicles in paragraphs (a), (b), and (c) of this subsection shall be registered by the county assessor or by the department or an agent of the department.

(a) Motor vehicles equipped primarily to haul passengers on a commercial basis, doing strictly an intrastate business, and having gross weights of twenty-six thousand (26,000) pounds or less.

(b) Any farm vehicle or combination of vehicles where each vehicle or combination of vehicles shall not exceed a gross weight of sixty thousand (60,000) pounds.

(c) Nonresident vehicles or combination of vehicles owned by transient labor used in hauling unprocessed agricultural products for hire and not exceeding sixty thousand (60,000) pounds gross weight shall register their vehicle for the appropriate gross weight scale for the annual fee if registered on or before June 30 and for one-half (1/2) the annual fee if not registered until on or after July 1 of any year, with the assessor of the county in which the owner resides.

(3) Commercial, farm and noncommercial vehicles of any weight doing strictly an intrastate business may be registered by the county assessor or by the department or an agent of the department by mutual agreement between the department and the county.

SECTION 17. That Section 49-402, Idaho Code, be, and the same is hereby amended to read as follows:

49-402. ANNUAL REGISTRATION. (1) The annual fee for operating each pickup truck, each neighborhood electric vehicle and each other motor vehicle having a maximum gross weight not in excess of eight thousand (8,000) pounds and that complies with the federal motor vehicle safety standards as defined in section 49-107, Idaho Code, shall be:

Vehicles one (1) and two (2) years old	\$69.00
Vehicles three (3) and four (4) years old	\$57.00
Vehicles five (5) and six (6) years old	\$57.00
Vehicles seven (7) and eight (8) years old	\$45.00
Vehicles over eight (8) years old	\$45.00

There shall be twelve (12) registration periods, starting in January for holders of validation registration stickers numbered 1, and proceeding consecutively through December for holders of validation registration stickers numbered 12, each of which shall start on the first day of a calendar month and end on the last day of the twelfth month from the first day of the beginning month. Registration periods shall expire at midnight on the last day of the registration period in the year designated by the validation registration sticker. The numeral digit on the validation registration stickers shall, as does the registration card, fix the registration period

1 under the staggered registration system for the purpose of reregistration
2 and notice of expiration.

3 A vehicle that has once been registered for any of the above-designated
4 periods shall, upon reregistration, be registered for the period bearing the
5 same number, and the registration card shall show and be the exclusive proof
6 of the expiration date of registration and licensing. Vehicles may be ini-
7 tially registered for less than a twelve (12) month period, or for more than a
8 twelve (12) month period, and the fee prorated on a monthly basis if the frac-
9 tional registration tends to fulfill the purpose of the monthly series reg-
10 istration system.

11 (2) For all school buses operated either by a nonprofit, nonpublic
12 school or operated pursuant to a service contract with a school district for
13 transporting children to or from school or in connection with school-ap-
14 proved activities, the annual fee shall be twenty-four dollars (\$24.00) and
15 shall be subject to staggered registration for the purpose of reregistration
16 and notice of expiration.

17 (3) For all motorcycles and motor-driven cycles that comply with the
18 federal motor vehicle safety standards, operated on the public highways, the
19 annual fee shall be nineteen dollars (\$19.00) and shall be subject to stag-
20 gered registration for the purpose of reregistration and notice of expira-
21 tion.

22 (4) For operation of an all-terrain vehicle, utility type vehicle or
23 motorbike, excluding a motorbike with an engine displacement of fifty (50)
24 cubic centimeters or less, on city, county or highway district roads or
25 highways open to such use, a restricted vehicle license plate fee pursuant
26 to section 49-450, Idaho Code, shall be paid. In addition, the certifi-
27 cate of number fee specified in section 67-7122, Idaho Code, shall be paid
28 as provided in section 67-7122, Idaho Code. The certificate of number and
29 restricted vehicle license plate exemption provided in section 49-426(2),
30 Idaho Code, applies to all-terrain vehicles, utility type vehicles, motor-
31 bikes and motorcycles used for the purposes described in section 49-426(2),
32 Idaho Code. Nonresidents shall be allowed to purchase a restricted vehicle
33 license plate and validation sticker pursuant to section 67-7124, Idaho
34 Code, for an all-terrain vehicle, utility type vehicle, or motorbike.

35 (5) For all motor homes, the fee shall be as specified in subsection (1)
36 of this section and shall be in addition to the fees provided for in section
37 49-445, Idaho Code.

38 (6) Registration fees shall not be subject to refund.

39 (7) A financial institution or repossession service contracted to
40 a financial institution repossessing vehicles under the terms of a secu-
41 rity agreement shall move the vehicle from the place of repossession to the
42 financial institution's place of business on a repossession plate. The
43 repossession plate shall also be used for demonstrating the vehicle to a
44 prospective purchaser for a period not to exceed ninety-six (96) hours. The
45 registration fees for repossession plates shall be as required in subsection
46 (1) of this section for a vehicle one (1) and two (2) years old. All other
47 fees required under chapter 4, title 49, Idaho Code, shall be in addition to
48 the registration fee. The repossession plate shall be subject to staggered
49 registration for the purpose of reregistration and notice of expiration.

(8) A wrecker or towing business engaged in the process of towing motorized vehicles that have been wrecked, abandoned, salvaged or may be disabled may apply for a wrecker plate to be displayed on those vehicles being towed, provided the power unit is properly registered under this chapter. The registration fees for wrecker plates shall be as required in subsection (1) of this section for a vehicle one (1) and two (2) years old. All other fees required under chapter 4, title 49, Idaho Code, shall be in addition to the registration fee and shall be subject to staggered registration for the purpose of reregistration and notice of expiration.

(9) In addition to the annual registration fee in this section, there shall be an initial program fee of twenty-five dollars (\$25.00) and an annual program fee of fifteen dollars (\$15.00) for all special license plate programs for those license plates issued pursuant to sections 49-404A, 49-407, 49-408, 49-409, 49-414, 49-416, 49-418 and 49-418D, Idaho Code. For special plates issued pursuant to section 49-417E, Idaho Code, there shall be an initial program fee of seventy dollars (\$70.00) and an annual program fee of fifty dollars (\$50.00). For special plates issued pursuant to sections 49-406 and 49-406A, Idaho Code, there shall be an initial program fee of twenty-five dollars (\$25.00) but there shall be no annual renewal fee. For special plates issued pursuant to sections 49-415D, 49-417, 49-417A, 49-417B, 49-417C, 49-417D, 49-418A, 49-418B, 49-418C, 49-419, 49-419A, 49-419C, 49-419E, 49-420, 49-420A, 49-420B, 49-420C, 49-420D, 49-420E, 49-420J, 49-420K, 49-420L, 49-420M, 49-420N, 49-420O, 49-420P, 49-420Q, 49-420R, 49-420S, and 49-420T, and ~~49-420T~~ 49-420U, Idaho Code, and unless otherwise expressly provided for in this chapter, any new special plate program effective on and after January 1, 2013, pursuant to section 49-402D, Idaho Code, there shall be an initial program fee of thirty-five dollars (\$35.00) and an annual program fee of twenty-five dollars (\$25.00). The fees contained in this subsection shall be applicable to all new special plate programs and shall be subject to staggered registration for the purpose of reregistration and notice of expiration. The initial program fee and the annual program fee shall be deposited in the state highway account and shall be used to fund the cost of administration of special license plate programs, unless otherwise specified by law.

(10) Any vehicle that does not meet federal motor vehicle safety standards shall not be registered and shall not be permitted to operate on public highways of the state, as defined in section 40-117, Idaho Code, unless otherwise specifically authorized.

(11) In addition to annual registration fees as provided in this section, registrants may pay a fee to purchase an Idaho state parks passport authorizing resident motor vehicle entry into all Idaho state parks. Registrants may pay the fee for a one (1) year or two (2) year period of time. The fee shall be ten dollars (\$10.00) for one (1) year and twenty dollars (\$20.00) for two (2) years. All fees collected pursuant to this subsection shall be deposited into the park and recreation fund and shall be subject to appropriation. Fees collected pursuant to this subsection shall not be considered a motor vehicle registration fee as provided in section 17, article VII of the constitution of the state of Idaho.

SECTION 18. That Section 49-402D, Idaho Code, be, and the same is hereby amended to read as follows:

1 49-402D. SPECIAL LICENSE PLATE PREQUALIFICATION PROCESS.

2 (1) (a) For any new special license plate program approved by the legis-
3 lature, the program sponsor shall, before issuance of any such special
4 license plate, meet the prequalification process outlined in this sec-
5 tion. The program sponsor for any special plate program shall:

6 (i) Submit a financial plan for the use of the proceeds from the
7 special license plate sales and certify that all such proceeds
8 shall be deposited in the highway distribution account, except for
9 military license plates and any new special plate that may be es-
10 tablished for the benefit of the state of Idaho or any department,
11 division, bureau, or agency thereof, including an Idaho college or
12 university pursuant to section 49-418A, Idaho Code, or a license
13 plate for the benefit of firearms safety education programs pur-
14 suant to section 49-420S, Idaho Code; and ~~or~~

15 (ii) Designate an individual who shall be deemed responsible by
16 the agency for certifying compliance with the requirements of this
17 section and working with the department.

18 (b) The department is authorized and shall adopt and promulgate rules
19 to carry out the provisions of this section.

20 (2) If the request for a special license plate is approved by the de-
21 partment, the following requirements, in addition to those set out in sub-
22 section (1) of this section, shall be met by September 1 prior to the next
23 legislative session and prior to the issuance of any special license plates
24 approved by the legislature.

25 (a) The applicant shall deposit estimated programming and administra-
26 tive costs with the department to be utilized for programming costs of
27 the specialty plate. Administrative costs in the amount of one thousand
28 dollars (\$1,000) shall be nonrefundable.

29 (b) In addition to the requirements provided for in section 49-402C,
30 Idaho Code, the applicant requesting a special license plate program
31 shall provide to the department an acceptable plate design.

32 (c) The applicant shall transmit to the department a list of two hundred
33 fifty (250) applicants, whose vehicles are currently registered in the
34 state of Idaho, who intend to purchase the specialty plate when avail-
35 able, as evidenced by completing forms provided by the department.

36 (3) The department shall submit the completed applications for special
37 license plate programs that meet the requirements of this section to the
38 chairmen of the senate transportation committee and the house of representa-
39 tives transportation and defense committee each year on behalf of the agency
40 to be included for consideration in the next legislative session.

41 (4) On an annual basis, by December 1 of each calendar year, the sponsor
42 of a special license plate program shall prepare an annual report, which
43 shall be made available on request and shall be forwarded to the department.
44 Such report shall include an accounting of revenues and expenditures associ-
45 ated with the funds collected for the special license plate program. The de-
46 partment shall compile and forward such reports to the chairmen of the senate
47 transportation committee and the house of representatives transportation
48 and defense committee by January 15 of each year. Failure of the agency to
49 provide such report by the due date shall result in the discontinuation of
50 the special license plate program sales on January 1. The provisions of this

1 section shall exclude special plates established for the highway distri-
 2 bution account, the state of Idaho or any department, division, bureau, or
 3 agency thereof, an Idaho college or university pursuant to section 49-418A,
 4 Idaho Code, a license plate for the benefit of firearms safety education
 5 programs pursuant to section 49-420S, Idaho Code, and military license plate
 6 programs.

7 (5) Any decision by the department that the special license plate pro-
 8 gram application does not meet the provisions of this section may be appealed
 9 to the director of the department. Such notice of appeal shall be made in
 10 writing within twenty (20) days of the notice of denial. For all denied ap-
 11 plications, the department shall, at the next legislative session, report
 12 to the senate and house of representatives transportation committees on such
 13 denied applications and the reason for the denials.

14 SECTION 19. That Section 49-420T, Idaho Code, as enacted by Section 2,
 15 Chapter 172, Laws of 2025, be, and the same is hereby amended to read as fol-
 16 lows:

17 ~~49-420T~~ 49-420U. AN APPEAL TO HEAVEN ~~LICENCE~~ LICENSE PLATES. (1) On
 18 and after January 1, 2026, any person who is the owner of a vehicle registered
 19 under the provisions of section 49-402, Idaho Code, or registered under any
 20 other section of law for which the purchase of special plates is allowed, may
 21 apply for and, upon department approval, receive special an appeal to heaven
 22 license plates in lieu of regular license plates.

23 (2) The provisions of this section shall not apply to any vehicle with
 24 a registered maximum gross weight over twenty-six thousand (26,000) pounds.
 25 Availability of an appeal to heaven license plates for other vehicles shall
 26 be subject to the rules, policies, and procedures of the department.

27 (3) In addition to the regular registration fee required in this chap-
 28 ter, the applicant shall be charged a fee of thirty-five dollars (\$35.00) for
 29 the initial issuance of plates, and twenty-five dollars (\$25.00) upon each
 30 succeeding annual registration. Such fees shall be deposited in the state
 31 highway account and shall be used, in part, to fund the cost of the plate de-
 32 sign and administration of this special license plate program.

33 (4) Whenever title or interest in a vehicle registered under the pro-
 34 visions of this section is transferred or assigned, the owner may transfer
 35 the special plates to another vehicle upon payment of the required transfer
 36 fees. The owner may display the plates on another vehicle only upon receipt
 37 of the new registration from the department.

38 (5) Notwithstanding the provisions of section 49-402C, Idaho Code, the
 39 an appeal to heaven license plate design shall be of a color and design sim-
 40 ilar to the flag portion of the United States postal service's 1968 six-cent
 41 (6¢) stamp commemorating George Washington's cruisers flag of 1775, except
 42 with a brown tree trunk and the words "AN APPEAL TO HEAVEN" on the bottom cen-
 43 ter and the word "IDAHO" in the top center. Such design shall be approved
 44 by the department, utilizing a numbering system as determined by the depart-
 45 ment.

46 (6) The an appeal to heaven license plate established in this section
 47 shall be exempt from the requirements of section 49-402D.

48 (7) Sample an appeal to heaven license plates may be purchased for a
 49 fee of fifteen dollars (\$15.00), which shall be deposited in the state high-

1 way account. No additional fee shall be charged for personalizing sample
2 plates.

3 SECTION 20. That Section 54-1421, Idaho Code, as enacted by Section 1,
4 Chapter 187, Laws of 2025, be, and the same is hereby amended to read as fol-
5 lows:

6 ~~54-1421~~ 54-1422. DELEGATION. (1) A nurse with appropriate education,
7 training, and experience and who is licensed under this chapter may dele-
8 gate to a non-nurse tasks that do not involve the exercise of independent
9 clinical judgment, as long as the nurse responsible for delegation maintains
10 proper supervision and is satisfied that the person is qualified and ade-
11 quately trained.

12 (2) For the purposes of this section, "tasks that do not involve the ex-
13 ercise of independent clinical judgment" are duties that an individual has
14 received formal training to perform and that such individual is certified to
15 perform by a national organization acceptable to the board.

16 SECTION 21. That Section 54-5802, Idaho Code, be, and the same is hereby
17 amended to read as follows:

18 54-5802. DEFINITIONS. As used in this chapter:

19 (1) "Apprentice" means a person registered with the barber and cosme-
20 tology services licensing board to learn an occupation in a licensed estab-
21 lishment who, while so learning, performs or assists in performing any prac-
22 tices of barbering, barber-styling, cosmetology, or electrology.

23 (2) "Barber" means a person licensed to practice barbering as defined
24 in this section.

25 (3) "Barbering" means any one (1) or any combination of the following
26 practices when performed on the upper part of the human body for cosmetic
27 purposes and not for the treatment of disease or physical or mental ailments:

28 (a) Shaving the face or cutting, trimming, arranging, dressing, curl-
29 ing, cleansing, singeing or performing similar work on the hair;

30 (b) Fitting, cutting or dressing hairpieces or toupees;

31 (c) Giving facial and scalp massages or treatments with oils, creams,
32 lotions or other preparations, either by hand or by a mechanical appli-
33 ance; and

34 (d) Applying cosmetic preparations, antiseptics, powders, oils, clays
35 or lotions to the scalp, face, and neck.

36 (4) "Barber-styling" means any one (1) or any combination of the fol-
37 lowing practices when performed on the upper part of the human body for cos-
38 metic purposes and not for the treatment of disease or physical or mental
39 ailments:

40 (a) Shaving the face or cutting, trimming, arranging, dressing, curl-
41 ing, waving by any method, straightening, cleansing, singeing, bleach-
42 ing, coloring or performing similar work on the hair;

43 (b) Fitting, cutting or dressing hairpieces or toupees;

44 (c) Giving facial and scalp massages or treatments with oils, creams,
45 lotions or other preparations, either by hand or by a mechanical appli-
46 ance; and

(d) Applying cosmetic preparations, antiseptics, powders, oils, clays or lotions to the scalp, face, and neck.

(5) "Barber-stylist" means a person licensed to practice barber-styling as defined in this section.

(6) "Board" means the barber and cosmetology services licensing board established by section 54-5806, Idaho Code.

(7) "Cosmetologist" means a person licensed to practice cosmetology as defined in this section.

(8) "Cosmetology" means any one (1) or any combination of the following practices when performed on the human body for cosmetic purposes and not for the treatment of disease or physical or mental ailments:

(a) Cutting, trimming, arranging, dressing, curling, waving by any method, cleansing, singeing, bleaching, coloring or performing similar work on the hair, except as provided for in subsection ~~(25)~~ (24) of this section; ~~(23)~~

(b) Fitting, cutting or dressing hairpieces or toupees;

(c) Noninvasive care of the skin by application of cosmetic preparations, antiseptics, tonics, lotions, creams and essential oils to cleanse, massage, exfoliate, hydrate and stimulate; makeup application; pore extraction; use of chemical exfoliants approved for professional esthetic use; particle exfoliation; use of any class I medical device, as classified by the United States food and drug administration, designed for care of the skin, except that a class II medical device designed for care of the skin may be used as directed and supervised by an authorized and licensed health care practitioner; temporary removal of superfluous hair by lotions, creams, waxing, tweezing, depilatories or other means; and tinting or perming the eyebrows and eyelashes; and

(d) Manicuring and pedicuring nails and applying artificial nails.

(9) "Division" means the division of occupational and professional licenses.

(10) "Electrologist" means a person licensed to practice electrology, as defined in this section, and skilled in the permanent removal of unwanted hair.

(11) "Electrology" or "electrolysis" means the permanent removal of hair by destroying the hair-producing cells of the skin and vascular system through the use of equipment and devices approved by and registered with the United States food and drug administration.

(12) "Establishment" means a place licensed under this chapter, other than a licensed school, where barbering, barber-styling, cosmetology or electrology is practiced.

(13) "Esthetician" means a person licensed to practice esthetics as defined in this section.

(14) "Esthetics" means noninvasive care of the skin by application of cosmetic preparations, antiseptics, tonics, lotions, creams and essential oils to cleanse, massage, exfoliate, hydrate and stimulate; makeup application; pore extraction; use of chemical exfoliants approved for professional esthetic use; particle exfoliation; use of any class I medical device, as classified by the United States food and drug administration, designed for care of the skin, except that a class II medical device designed for care

1 of the skin may be used as directed and supervised by an authorized and li-
 2 censed health care practitioner; temporary removal of superfluous hair by
 3 lotions, creams, waxing, tweezing, depilatories or other means; and tinting
 4 or perming the eyebrows and eyelashes.

5 (15) "Haircutting" means cutting, trimming, arranging, dressing, curl-
 6 ing, cleansing, singeing or performing similar work on the hair and fitting,
 7 cutting or dressing hairpieces or toupees.

8 (16) "Hairpieces or toupees" means a full or partial head covering that
 9 is made from natural or synthetic hair that is affixed to a person's scalp,
 10 hair, or head with an adhesive agent such as glue, tape, keratin bonds, fu-
 11 sion bonds, or other bonding agent, and is worn during activities such as
 12 sleep, exercise, and bathing.

13 (17) "High school student" means a person who has completed the first
 14 two (2) years of high school and is enrolled in a high school or secondary
 15 school licensed under this chapter.

16 (18) "Instructor" means a person licensed under this chapter to prac-
 17 tice and teach any practice defined in this section.

18 (19) "Instructor trainee" means a barber, barber-stylist or cosmetol-
 19 ogist attending a licensed school to receive training to teach barbering,
 20 barber-styling or cosmetology.

21 (20) "Licensed school" means a secondary or postsecondary barber, cos-
 22 metology, or electrology school that:

23 (a) Is licensed under its official name by the barber and cosmetology
 24 services licensing board; and

25 (b) Admits as students only those individuals who meet the requirements
 26 of section 54-5810(1)(b), Idaho Code.

27 ~~(22)~~ (21) "Makeup artistry" means noninvasive care of the skin by appli-
 28 cation of cosmetic preparations for cleansing and the application of makeup,
 29 which includes the application of cosmetics or any pigment product that is
 30 used to cover, camouflage or decorate the skin.

31 ~~(23)~~ (22) "Nail technician" means a person licensed to practice nail
 32 technology as defined in this section.

33 ~~(24)~~ (23) "Nail technology" means any one (1) or more of the following
 34 practices when performed on the human body:

35 (a) Manicuring and pedicuring nails;

36 (b) Applying artificial nails; and

37 (c) Massaging the hands and feet.

38 ~~(25)~~ (24) "Natural hair braiding" means the service of twisting, wrap-
 39 ping, weaving, extending, locking, or braiding hair by hand or with a mechan-
 40 ical device.

41 (a) "Natural hair braiding" includes:

42 (i) The use of natural or synthetic hair extensions, natural or
 43 synthetic hair and fibers, and decorative beads and other hair ac-
 44 cessories;

45 (ii) Minor trimming of natural hair or hair extensions incidental
 46 to twisting, wrapping, weaving, extending, locking, or braiding
 47 hair;

48 (iii) The making of wigs from natural hair, natural fibers, syn-
 49 thetic fibers, and hair extensions; and

(iv) The use of topical agents, such as conditioners, gels, moisturizers, oils, pomades, and shampoos, in conjunction with performing services under subparagraphs (i) or (ii) of this paragraph.

(b) "Natural hair braiding" does not include:

(i) The application of dyes, reactive chemicals, or other preparations to alter the color of the hair or to straighten, curl, or alter the structure of the hair; or

(ii) The use of chemical hair joining agents, such as synthetic tape, keratin bonds, or fusion bonds.

~~(26)~~ (25) "Retail cosmetics dealer" means a stationary business offering cosmetic products for sale at retail to the general public in which the business's employees apply cosmetic products to customers' faces in connection with the sale or attempted sale of the products without compensation from the customer other than the regular price of the products.

~~(28)~~ (26) "Student" means a person learning barbering, barber-styling, cosmetology or electrology at a licensed school who, while so learning, performs or assists in performing any practices of barbering, barber-styling, cosmetology or electrology.

~~(29)~~ (27) "Wig" means a removable head covering that is made from natural hair, natural fibers that resemble hair, or synthetic fibers that resemble hair. A wig is not affixed to a person's scalp or hair using an adhesive agent such as glue, tape, keratin bonds, fusion bonds, or other bonding agent.

SECTION 22. That Section 55-103, Idaho Code, be, and the same is hereby amended to read as follows:

55-103. WHO MAY OWN PROPERTY. (1) Except as provided in subsection (2) or (3) of this section, any person, whether citizen or alien, may take, hold, and dispose of property, real or personal.

(2) Notwithstanding any provision of law to the contrary, on and after the effective date of this subsection, a foreign government or a foreign state-controlled enterprise shall not purchase, acquire, or hold any controlling interest in agricultural land, forest land, water rights, mining claims, or mineral rights in the state of Idaho. This subsection does not apply to any interest in agricultural land, forest land, water rights, mining claims, or mineral rights acquired by a foreign government or foreign state-controlled enterprise prior to the effective date of this subsection or to any foreign pension fund.

(3) Notwithstanding any other provision of law to the contrary, a foreign principal from a foreign adversary shall not purchase, acquire, or hold any controlling interest, except a de minimis indirect interest, in agricultural land, water rights, mining claims, or mineral rights in the state of Idaho. A foreign principal has a de minimis indirect interest if any ownership is the result of the foreign principal's ownership of registered equities in a publicly traded company owning the land and if the foreign principal's ownership in the company is either:

(a) Less than five percent (5%) of any class of registered equities or less than five percent (5%) in the aggregate in multiple classes of registered equities; or

1 (b) A noncontrolling interest in an entity controlled by a company that
2 is both registered with the United States securities and exchange com-
3 mission as an investment advisor under the investment advisers act of
4 1940, as amended, and is not a foreign entity.

5 (4) A foreign principal that directly or indirectly owns or otherwise
6 controls agricultural land, water rights, mining claims, or mineral rights
7 in the state of Idaho must sell, transfer, or otherwise divest itself of
8 the agricultural land, mining claims, or mineral rights within one hundred
9 eighty (180) days of the effective date of this act.

10 (5) A foreign principal that directly or indirectly owns or acquires
11 agricultural land, water rights, or any interest in such land in this state
12 must register with the Idaho state department of agriculture within sixty
13 (60) days of the effective date of this act or the date of acquisition,
14 whichever is latest. The department must establish a form for such registra-
15 tion, which, at a minimum, must include all of the following:

16 (a) The name of the owner of the agricultural land, water rights, or the
17 owner of the interest in such land;

18 (b) The address of the agricultural land, the property appraiser's par-
19 cel identification number, and the property's legal description; and

20 (c) The number of acres of agricultural land.

21 (6) A foreign principal that directly owns or acquires mining claims
22 or mineral rights or any interest in such claims in this state must register
23 with the Idaho department of lands and the Idaho secretary of state within
24 sixty (60) days of the effective date of this act or the date of acquisition,
25 whichever is latest. The foreign principal shall be registered to do busi-
26 ness with the Idaho secretary of state's office. The Idaho department of
27 lands shall provide the form for such registration, which at a minimum must
28 include the following:

29 (a) The mineral lease number with lease length and premises by parcel
30 and acres; and

31 (b) The application for use of state land by the individual or legal en-
32 tity.

33 (7) Notwithstanding the provisions of subsection (3) of this section, a
34 foreign principal from a foreign adversary country may acquire agricultural
35 land, mining claims, or mineral rights on or after July 1, 2025, by devise
36 or descent, through the enforcement of security interests, or through the
37 collection of debts, provided that the foreign principal sells, transfers,
38 or otherwise divests itself of the agricultural land, water rights, mining
39 claims, or mineral rights within one hundred eighty (180) days of acquiring
40 the agricultural land, mining claims, or mineral rights.

41 (8) The provisions of subsections (3) through (7) of this section shall
42 not apply to an entity that has a national security agreement with the com-
43 mittee on foreign investment in the United States as of July 1, 2025, and
44 maintains such national security agreement.

45 (9) The Idaho state department of agriculture and department of lands
46 shall adopt rules, subject to legislative approval, to implement the provi-
47 sions of this section.

48 (10) The responsibility for determining whether an entity is subject to
49 this section rests solely with the foreign entity, the attorney general, or
50 any qualifying whistleblower, and no other individual or entity. An indi-

vidual or entity who is not a foreign entity shall not be required to determine or inquire whether another person or entity is or may be subject to the provisions of this section and shall bear no civil or criminal liability under this section.

(11) If a foreign principal from a foreign adversary country does not divest the public or private lands, mining claims, or mineral rights as required by this section, the attorney general shall commence an action in the district court within the jurisdiction of the public or private land, mining claims, or mineral rights.

(12) If the public or private land is held in violation of this section, the district court shall order that the public or private land be sold through judicial foreclosure.

(13) Proceeds of the sale shall be disbursed to lienholders, in the order of priority, except for liens that, under the terms of the sale, are to remain on the public or private land.

(14) Any individual may act as a whistleblower and provide a referral to the office of the attorney general for violations of this section.

(15) If a whistleblower referral results in a divestiture of land, mining claims, or mineral rights or other assets held in violation of this section, the whistleblower shall be entitled to a reward equal to thirty percent (30%) of the proceeds of the land, mining claims, mineral rights, or asset sale resulting from a violation of this section after payment of lienholders. Proceeds of the sale shall be disbursed in the following order:

(a) To bona fide lienholders, in order of priority, except for liens that, under the terms of the sale, are to remain on the property;

(b) The payment of authorized costs of the sale, including all approved fees and expenses of the referee and any taxes and assessments due;

(c) The payment, in an amount approved by the court, to the attorney general for reimbursement of investigation and litigation costs and expenses;

(d) To whistleblowers; and

(e) To the restricted foreign entity.

(16) The whistleblower enforcement provision takes effect one hundred eighty (180) days after the enforcement date of this section.

(17) As used in this section:

(a) "Agricultural land" shall have the same meaning as "land actively devoted to agricultural purposes" as provided in section 63-604, Idaho Code.

(b) "Controlling interest" means:

(i) Possession of more than fifty percent (50%) of the ownership interest in an entity; or

(ii) A percentage of ownership interest in an entity that is fifty percent (50%) or less if a foreign government actually directs the business and affairs of the entity without the requirement or consent of any other party.

(c) "Foreign adversary" means any foreign government or foreign non-government person engaged in a long-term pattern or serious instances of conduct significantly adverse to the national security of the United States or security and safety of United States persons as determined under 15 CFR 791.4, as it existed on January 1, 2025.

1 (d) "Foreign government" means a government other than the federal gov-
2 ernment of the United States or the government of any state, political
3 subdivision of a state, territory, federally recognized Indian tribe,
4 or possession of the United States.

5 (e) "Forest land" means privately owned or state-owned land being held
6 and used primarily for the continuous purpose of growing and harvesting
7 trees of a marketable species. Having met the above criteria, forest
8 land includes:

9 (i) Forest land is land evidenced by present use and silvicult-
10 tural treatment.

11 (ii) Forest land is land that has a dedicated use that is further
12 evidenced by a forest land management plan that includes eventual
13 harvest of the forest crop.

14 (iii) Forest land is land bearing forest growth or land that has
15 not been converted to another use.

16 (iv) Forest land is land that has had the trees removed by man
17 through harvest, including clear-cuts or by natural disaster,
18 such as but not limited to fire, and which within five (5) years af-
19 ter harvest or initial assessment will be reforested as specified
20 in the forest practices act, chapter 13, title 38, Idaho Code.

21 (f) "Foreign pension fund" means a trust, corporation, or other entity
22 created or organized under the law of a country other than the United
23 States to provide retirement or pension fund benefits. However, the
24 term "foreign pension fund" shall not include any trust, corporation,
25 or other entity that is owned by or subject to a controlling interest of
26 a sovereign wealth fund.

27 (g) "Foreign principal" means:

28 (i) The government or any official of the government of a foreign
29 adversary;

30 (ii) A political party or member of a political party or any subdi-
31 vision of a political party of a foreign adversary;

32 (iii) A partnership, association, corporation, organization, or
33 other combination of persons organized under the laws of or having
34 its principal place of business in a foreign adversary, or a sub-
35 sidiary of such entity, owned or controlled wholly or in part by
36 any person, entity, or collection of persons or entities of a for-
37 eign adversary;

38 (iv) Any person who is domiciled in a foreign adversary and is not
39 a citizen or lawful permanent resident of the United States; and

40 (v) Any person, entity, or collection of persons or entities de-
41 scribed in this paragraph having a controlling interest in a part-
42 nership, association, corporation, organization, trust, or any
43 other legal entity or subsidiary formed for the purpose of owning
44 real property.

45 (h) "Mineral right" shall have the same meaning as provided in section
46 47-701, Idaho Code.

47 (i) "Mining claim" means a portion of land containing minerals that a
48 miner has a right to occupy and possess for the purpose of extracting
49 minerals.

(j) "State-controlled enterprise" means a business enterprise, however denominated, sovereign wealth fund, or state-backed investment fund in which a foreign government has a controlling interest.

(k) "Water right" shall have the same meaning as provided in section 42-230, Idaho Code.

~~(4)(a)~~ (18)(a) The attorney general shall investigate acquisitions of interests in real property reasonably suspected of violating the prohibitions provided for in subsection (2) of this section upon receipt of a complaint alleging such violation.

(b) The attorney general shall enforce the prohibitions provided for in subsection (2) of this section for any interest in land, rights, or claims held in violation of the provisions of subsection (2) of this section by petitioning the district court for an order and judgment that: finds such violation; appoints a receiver; and authorizes the receiver to sell such land, rights, or claims. For a receivership proceeding under this section:

(i) Proceeds of the sale shall be disbursed to lienholders, in order of priority, except for liens that, under the terms of the sale, are to remain on the land, rights, or claims;

(ii) At the receivership sale, lienholders shall be permitted to have a credit bid; and

(iii) Any excess proceeds shall be disbursed to the owner of record of the real property.

(c) Upon the commencement of an action provided for in this section, the attorney general shall promptly file a notice of lis pendens with the court.

(d) Upon the entry of a court order appointing a receiver and authorizing the receiver's powers to sell the property pursuant to the provisions of this section, the attorney general shall promptly record a copy of the court order in the office of the county where the property is located that is responsible for the maintenance of property records.

(e) No title to land, rights, or claims shall be invalid or subject to divestiture due to a violation of the provisions of this section by any former owner or other individual or entity having formerly held or owned an interest in the real property.

(f) Divestiture of a foreign government's or foreign state-controlled enterprise's title under this section shall not be a basis to void, invalidate, or otherwise extinguish any bona fide mortgage, lien, or other interest granted by, through, or under the foreign government or foreign state-controlled enterprise.

(g) No person or entity that is not a foreign government or a foreign state-controlled enterprise shall bear any civil or criminal liability for failing to determine or to make an inquiry about whether an individual or other entity is a foreign government or a foreign state-controlled enterprise.

SECTION 23. That Section 55-3203, Idaho Code, be, and the same is hereby amended to read as follows:

55-3203. DEFINITIONS. As used in this chapter:

1 (1) "Board" means the entity that has the duty of governing the home-
 2 owner's association and may be referred to as a board of directors, executive
 3 board, or any other such similar name.

4 (2) "Community manager" means a person or agent who provides for or oth-
 5 erwise engages in the management of a common interest community or the man-
 6 agement of a homeowner's association.

7 (3) "Declarant" means an individual or entity filing a declaration in
 8 association with a residential subdivision.

9 (4) "Declaration" means an instrument filed in the real property
 10 records of a county that includes restrictive covenants governing a residen-
 11 tial subdivision.

12 (5) "Financial disclosure" means the accounting records of the organi-
 13 zation that are kept, disclosed, and made available for inspection in accor-
 14 dance with part 11, chapter 30, title 30, Idaho Code, and the governing docu-
 15 ments of the homeowner's association.

16 (6) "Governing documents" means a written instrument by which the home-
 17 owner's association may exercise powers or manage, maintain, or otherwise
 18 affect the property under the jurisdiction of the homeowner's association.
 19 Governing documents includes but is not limited to articles of incorpora-
 20 tion, bylaws, a plat, rules of the homeowner's association, and any declara-
 21 tion of covenants, conditions, and restrictions.

22 (7) (a) "Homeowner's association" means any incorporated or unincorpo-
 23 rated residential association:

24 (i) In which membership is based on owning or possessing an inter-
 25 est in real property; and

26 (ii) That has the authority, pursuant to recorded covenants, by-
 27 laws, or other governing documents, to assess and record liens
 28 against the real property of its members.

29 (b) "Homeowner's association" includes the following persons who may
 30 or may not be members of a homeowner's association or serve on the board
 31 of a homeowner's association:

32 (i) A community manager pursuant to a contract with a homeowner's
 33 association; and

34 (ii) An agent or person with explicit or apparent authority to act
 35 on behalf of a homeowner's association.

36 (8) "Member" or "membership" means any person or entity owning or pos-
 37 sessing an interest in residential real property or a lot within the physical
 38 boundaries of an established homeowner's association.

39 (9) "Owner" means a person who holds record title to property in a resi-
 40 dential subdivision and includes an agent of a person who holds record title
 41 to property in a residential subdivision.

42 (10) "Transfer fee" means a fee, charge, or assessment, as that term is
 43 described in chapter 31, title 55, Idaho Code, charged by the homeowner's as-
 44 sociation and payable to the homeowner's association upon the transfer of an
 45 interest in real property that is under the jurisdiction of the homeowner's
 46 association. ~~(7)~~

47 SECTION 24. That Section 56-1003, Idaho Code, be, and the same is hereby
 48 amended to read as follows:

1 56-1003. POWERS AND DUTIES OF THE DIRECTOR. The director shall have
2 the following powers and duties:

3 (1) All of the powers and duties of the department of public health, the
4 department of health, the board of health, and all nonenvironmental protec-
5 tion duties of the department of health and welfare are hereby vested to the
6 director of the department of health and welfare. However, oversight of the
7 department and rulemaking and hearing functions relating to public health
8 and licensure and certification standards shall be vested in the board of
9 health and welfare. Except when the authority is vested in the board of
10 health and welfare under law, the director shall have all such powers and
11 duties as may have been or could have been exercised by his predecessors in
12 law, including the authority to adopt, promulgate, and enforce rules, and
13 shall be the successor in law to all contractual obligations entered into by
14 predecessors in law. All rulemaking proceedings and hearings of the direc-
15 tor shall be governed by the provisions of chapter 52, title 67, Idaho Code.

16 (2) The director shall, pursuant and subject to the provisions of Idaho
17 Code and this chapter, promulgate and recommend to the board rules to admin-
18 ister statutes related to health and licensure and certification require-
19 ments pertinent to health. Such rules may be of general application across
20 the state or may be limited in time, place, and circumstance as needed to ad-
21 dress problems.

22 (3) The director, under rules adopted by the board, shall have general
23 supervision of the health and welfare of the people of this state. The powers
24 and duties of the director shall include but are not limited to the follow-
25 ing:

26 (a) The education of the people of this state using guidelines and rec-
27 ommendations for issues of health, safety, mental health, and wellness;

28 (b) The issuance of licenses and permits as prescribed by law and by the
29 rules of the board;

30 (c) The supervision and administration of laboratories and the super-
31 vision and administration of standards of tests for environmental pol-
32 lution, chemical analyses and communicable diseases. The director may
33 require that laboratories operated by any city, county, institution,
34 person, firm or corporation for health or environmental purposes con-
35 form to standards set by the board of health and welfare and the board of
36 environmental quality in rule;

37 (d) The supervision and administration of a mental health program,
38 which shall include services for the evaluation, screening, custody and
39 treatment of the mentally ill and those persons suffering from a mental
40 defect or mental defects, and services for the prevention of suicide;

41 (e) The supervision and administration of the various schools, hos-
42 pitals, and institutions that were the responsibility of the board of
43 health and welfare;

44 (f) The supervision and administration of services dealing with sub-
45 stance abuse, including but not limited to treatment and rehabilita-
46 tion;

47 (g) Communication and cooperation with other governmental depart-
48 ments, agencies and boards in order to effectively assist with the
49 planning for the control of or abatement of health problems. All of the
50 rules adopted by the board shall apply to state institutions;

~~(i)~~ (h) The supervision of administrative units whose responsibility shall be to assist and encourage counties, cities, other governmental units, and industries in the control of and/or abatement of health problems; and

~~(j)~~ (i) The enforcement of all laws and rules relating to health.

(4) The director, when so designated by the governor, and any other time subject to the standard appropriations and approval process of the legislature, shall have the power to apply for, receive on behalf of the state, and utilize any federal aid, grants, gifts, or moneys made available through the federal government.

(5) The director shall have the power to enter into and make contracts and agreements with any public agencies or municipal corporations for the use of facilities, land, and equipment when such use will have a beneficial, recreational, or therapeutic effect or be in the best interest in carrying out the duties imposed upon the department. The director shall also have the power to enter into contracts for the expenditure of state matching funds for local purposes. This subsection will constitute the authority for public agencies or municipal corporations to enter into such contracts and expend money for the purposes delineated in such contracts.

(6) The director is authorized to adopt an official seal to be used on appropriate occasions, in connection with the functions of the department or the board, and such seal shall be judicially noticed. Copies of any books, records, papers and other documents in the department shall be admitted in evidence equally with the originals thereof when authenticated under such seal.

(7) The director, under rules adopted by the board of health and welfare and approved by the legislature pursuant to section 67-5291, Idaho Code, and section 29, article III of the constitution of the state of Idaho, shall have the power to impose and enforce orders of isolation, quarantine, or restricted access to protect the public from the spread of infectious or communicable diseases or from contamination from chemical, nuclear, or biological agents, whether naturally occurring or propagated by criminal or terrorist act.

(a) An order of isolation may be issued only for a person diagnosed with an infectious or a communicable disease, presenting medically unknown symptoms, or contaminated from a chemical, nuclear, or biological agent and only while a person is infectious, displaying unknown symptoms, or contaminated.

(b) An order of quarantine may be issued only for a person exposed to:

(i) An infectious or a communicable disease;

(ii) A person displaying medically unknown symptoms; or

(iii) Contamination from a chemical, nuclear, or biological agent;

under circumstances likely to result in the spread of the disease, symptoms, or contaminant to the person who had such contact and only for a reasonable period of time sufficient to determine whether the exposed person will become sick.

(c) If the director has reasonable cause to believe a chemical, nuclear, or biological agent has been released in an identifiable place, including a building or structure, the director may impose an order of

restricted access into or out of that place for the purpose of determining whether that place has been contaminated with a chemical, nuclear, or biological agent that may create a substantial and immediate danger to the public. An order of restricted access shall be effective only until such time as the contamination has been remediated and the area of restricted access has been determined to no longer pose an immediate health risk.

(d) An order of isolation, quarantine, or restricted access issued pursuant to this section shall not be subject to the Idaho administrative procedure act, chapter 52, title 67, Idaho Code, but shall be subject to judicial review as a final agency order. However, this shall not prevent the director from reconsidering, amending, or withdrawing the order. Judicial review of orders of isolation, quarantine, or restricted access shall be de novo. The court may affirm, reverse, or modify the order and shall affirm the order if the director shows by clear and convincing evidence that the order is reasonably necessary to protect the public from a substantial and immediate danger of the spread of an infectious or communicable disease or from contamination by a chemical, nuclear, or biological agent. A hearing on a request for review pursuant to this paragraph shall be held as soon as practicable but no later than three (3) business days after the request is made. Notice of the request for review to the court must be provided to the director. The court may order the person who is the subject of or affected by the order of isolation, quarantine, or restricted access to appear remotely via technology approved by the Idaho supreme court. Upon conclusion of a hearing described in this subsection, the court conducting judicial review shall issue an order:

(i) Affirming or modifying the order of isolation, quarantine, or restricted access; or

(ii) Reversing the order and releasing an individual who is the subject of or affected by such order.

(e) Any person who violates an order of isolation, quarantine, or restricted access shall be guilty of a misdemeanor.

(8) The director shall develop safeguards necessary to ensure the security of nonpublic personal information in the department's possession and to prevent undue disclosure of such information. The director shall establish a process to authenticate requests made by a person, entity or jurisdiction arising under the 2007 Hague convention on the international recovery of child support and other forms of family maintenance. In the event the department becomes aware of any improper disclosure, the director shall take all actions required under section 28-51-105, Idaho Code.

SECTION 25. That Section 56-1602, Idaho Code, be, and the same is hereby amended to read as follows:

56-1602. DEFINITIONS. As used in this chapter:

(1) "CMS" means the centers for medicare and medicaid services.

(2) "Department" means the Idaho department of health and welfare.

(3) "Fiscal year" means the time period from July 1 to June 30.

(4) "Fund" means the ICF assessment fund established pursuant to section 56-1603, Idaho Code.

(5) "ICF" means an intermediate care facility as defined in section 39-1301, Idaho Code, and licensed pursuant to chapter 13, title 39, Idaho Code.

(6) "Net patient service revenue" means gross revenues from services provided to ICF patients, less reductions from gross revenue resulting from an inability to collect payment of charges. Patient service revenue excludes nonpatient care revenues such as beauty and barber, vending income, interest and contributions, revenues from sale of meals and all outpatient revenues. Reductions from gross revenue includes: bad debts; contractual adjustments; uncompensated care; administrative, courtesy and policy discounts and adjustments; and other such revenue deductions.

(7) "Resident day" means a calendar day of care provided to an ICF resident, including the day of admission and excluding the day of discharge, provided that one (1) resident day shall be deemed to exist when admission and discharge occur on the same day.

(8) "Upper payment limit" means the limitation established in 42 CFR section 447.272, that disallows federal matching funds when state medicaid agencies pay certain classes of facilities an aggregate amount for services that exceed the amount that is paid for the same services furnished by that class of facilities under medicare payment principles.

SECTION 26. That Chapter 22, Title 56, Idaho Code, as enacted by Section 13, Chapter 84, Laws of 2025, be, and the same is hereby amended to read as follows:

CHAPTER 22 24

DRINKING WATER LABORATORY CERTIFICATION PROGRAM

~~56-2201~~ 56-2401. SHORT TITLE. This chapter shall be known and may be cited as the "Drinking Water Laboratory Certification Program."

~~56-2202~~ 56-2402. APPLICATION FOR CERTIFICATION. (1) An application for drinking water certification, listing methods approved by the department of environmental quality, shall be submitted annually by laboratories seeking certification on a form approved by the department of health and welfare.

(2) Applications for renewal and supporting documentation requested by the department of health and welfare must be received by the department at least thirty (30) days before the current certificate expires.

(3) A laboratory seeking to change methods or to add analytes prior to annual reapplication shall submit an amended application and provide supporting documentation requested by the department of health and welfare. Laboratories submitting an amended application shall be subject to an additional base fee charge.

(4) All certifications shall be valid for one (1) year from the date of issuance.

~~56-2203~~ 56-2403. CERTIFICATION FEES. (1) Laboratories requesting chemistry certification shall be charged a base fee of one hundred dollars (\$100) per discipline and twenty dollars (\$20.00) per analyte per method.

1 (2) Laboratories requesting microbiology certification shall be
2 charged a fee of one hundred fifty dollars (\$150).

3 (3) Out-of-state laboratories requesting chemistry certification
4 shall be charged a base fee of two hundred dollars (\$200) per discipline and
5 twenty dollars (\$20.00) per analyte per method.

6 (4) Out-of-state laboratories requesting microbiology certification
7 shall be charged a fee of three hundred dollars (\$300).

8 (5) New laboratories requesting certification will be charged a non-
9 refundable application fee of two hundred fifty dollars (\$250) per disci-
10 pline listed on the completed application form.

11 ~~56-2204~~ 56-2404. CERTIFICATION OVERSIGHT AND REQUIREMENTS. (1) Qual-
12 ified representatives of the department of health and welfare are authorized
13 to audit the premises and operations of all certified laboratories to de-
14 termine the adequacy of the laboratory to perform drinking water compliance
15 testing. On-site audits shall occur a minimum of every three (3) years or
16 more frequently at the discretion of the department. Departmental represen-
17 tatives shall issue a written report of audit findings, list items requiring
18 a laboratory response, and specify the response time frame required to main-
19 tain certification.

20 (2) Test results shall be submitted in a format approved by the depart-
21 ment of environmental quality and shall be reported to the department of en-
22 vironmental quality, or the department's designee, no later than ten (10)
23 business days after the completion of testing or upon receipt of results from
24 subcontracted laboratories.

25 (3) As soon as feasible, a laboratory shall notify the department of
26 environmental quality, or the department's designee, of any nitrate and ni-
27 trate level exceeding the current maximum contaminant level. Notification
28 shall also be made for any other regulated chemical or radiological contam-
29 inant that exceeds four (4) times the maximum contaminant level. Notifica-
30 tion requirements apply to any samples subcontracted to another laboratory.

31 (4) A laboratory shall notify the department of environmental quality,
32 or the department's designee, of any total coliform positive result by the
33 end of the day, unless the positive result is obtained after the department
34 of environmental quality is closed and the department of environmental qual-
35 ity does not have either an after-hours phone line or an alternative notifi-
36 cation procedure, in which case the laboratory shall notify the department
37 of environmental quality before the end of the next business day.

38 SECTION 27. That Section 57-829, Idaho Code, as enacted by Section 1,
39 Chapter 256, Laws of 2025, be, and the same is hereby amended to read as fol-
40 lows:

41 ~~57-829~~ 57-832. AMERICA250 COMMEMORATION FUND -- AMERICA250 ADVISORY
42 COMMITTEE. (1) There is hereby created in the state treasury the America250
43 commemoration fund for the purpose of funding Idaho's participation in cel-
44 ebrating the two hundred fiftieth anniversary of America's founding. All
45 moneys in the fund are to be used only for the purposes provided in this sec-
46 tion, and shall be expended only as directed and approved by the America250
47 advisory committee pursuant to the provisions of subsection (4) of this sec-
48 tion.

1 (2) Moneys in the fund shall include:

2 (a) Any remaining amounts appropriated by the legislature during the
3 2024 legislative session for the purposes described by this section;
4 and

5 (b) Gifts, grants, and other donations.

6 (3) The state treasurer shall invest the idle moneys of the America250
7 commemoration fund, and the interest earned on such investments shall be
8 retained by such fund. All unobligated funds remaining in the America250
9 commemoration fund on June 30, 2027, shall be transferred by the state con-
10 troller on such date into the general fund.

11 (4) (a) There is hereby created the America250 advisory committee that
12 shall be comprised of seven (7) members, and shall include the director
13 of the state historical society, the state treasurer, one (1) member
14 appointed by the governor, and four (4) members appointed by the leg-
15 islative council. The legislative council shall select the chair of
16 the America250 advisory committee. The America250 advisory committee
17 shall direct and approve all distributions of funds from the America250
18 commemoration fund. The America250 advisory committee shall meet at
19 least annually at such place and time as it determines and may meet as
20 often as necessary to discharge the duties imposed on it.

21 (b) Notwithstanding any provision of law to the contrary, the divi-
22 sion of financial management shall approve the spending authority of
23 the America250 commemoration fund for any spending directive that is
24 approved by the America250 advisory committee for any state entity in
25 the same manner as the approval process for funds that are not cogniz-
26 able pursuant to section 67-3516(2), Idaho Code. Spending authority
27 approved pursuant to this subsection shall only be made for each state
28 entity that does not have sufficient authority within such entity's
29 current appropriation from its miscellaneous revenue fund or other
30 allowable fund to comply with the America250 advisory committee's
31 spending directive. If a state entity does not have an allowable mis-
32 cellaneous fund from which to expend moneys, the state entity shall
33 establish a miscellaneous revenue fund to facilitate the spending di-
34 rective of the America250 advisory committee.

35 (c) The state treasurer, on behalf of the America250 advisory com-
36 mittee, shall record and track all revenues and expenditures by fund
37 sources pursuant to subsection (2) of this section for each approved
38 purpose and to ensure that moneys are not allocated in excess of avail-
39 able revenue.

40 SECTION 28. That Section 58-307, Idaho Code, be, and the same is hereby
41 amended to read as follows:

42 58-307. TERM OF LEASE -- APPLICATION FOR RENEWAL -- ALLOWANCE FOR IM-
43 PROVEMENTS. (1) No lease of state trust lands shall be for a longer term than
44 twenty (20) years.

45 (2) Notwithstanding any other provisions of law, all state lands may
46 be leased for a period of up to twenty-five (25) years to the federal gov-
47 ernment, to federal agencies, state agencies, counties, or cities, school
48 districts or political subdivisions when leased for public purposes. Such

1 leases for public purposes may be entered into by negotiation and shall se-
2 cure a rental amount based on the fair market value of the state land.

3 (3) Notwithstanding any other provisions of law, all state endowment
4 trust lands may be leased for a period of up to thirty-five (35) years for
5 residential purposes as determined by the state board of land commissioners
6 including, but not limited to, single family, recreational cottage site and
7 homesite leases.

8 (4) Notwithstanding any other provision of law to the contrary, all
9 state lands may be leased for a period of up to forty (40) years for grazing
10 leases.

11 (5) Notwithstanding any other provisions of law, all state endowment
12 trust lands may be leased for a period of up to forty-nine (49) years for com-
13 mercial purposes under such terms and conditions as may be set by the board,
14 provided that, for such leases in excess of twenty (20) years, the board con-
15 sults with the county commissioners of the county in which the lands are lo-
16 cated before leasing the lands, and the use for which the land is leased shall
17 be consistent with the local planning and zoning ordinances insofar as is
18 reasonable and practicable. For each lease in excess of twenty (20) years,
19 the department shall hold a hearing in the county in which the parcel is lo-
20 cated. Grazing leases shall be excluded from the hearing requirement.

21 (6) The term "commercial purposes" means fuel cells, low impact hy-
22 dro, wind, geothermal resources, biomass, cogeneration, sun or landfill
23 gas as the principal source of power with a facility capable of generating
24 not less than twenty-five (25) kilowatts of electricity, industrial enter-
25 prises, retail sales outlets, business and professional office buildings,
26 hospitality enterprises, commercial recreational activities, multifamily
27 residential developments and other similar businesses. For purposes of
28 this section, farming leases, grazing leases, conservation leases including
29 lands enrolled in federal conservation programs such as the conservation
30 reserve enhancement program (CREP), noncommercial recreation leases, oil
31 and gas leases, mineral leases, communication site leases, single family,
32 recreational cottage site and homesite leases, and leases for other similar
33 uses, are not considered leases for commercial purposes. ~~The terms fuel~~
34 ~~cells, low impact hydro, wind, geothermal resources, biomass, cogeneration,~~
35 ~~sun or landfill gas shall have the same definitions as provided in section~~
36 ~~63-3622QQ, Idaho Code.~~

37 (7) The board may require that all fixed improvements constructed upon
38 land leased for commercial purposes be removed or become the property of the
39 state upon termination of the lease, and that any heirs, encumbrances or
40 claims of third parties with respect to any improvements shall be expressly
41 subordinate and subject to the rights of the state under this section.

42 (8) Except for oil and gas, mineral and commercial leases, the lease
43 year shall run from January 1 through December 31, and all leases shall ex-
44 pire on December 31 of the year of expiration.

45 (9) All applications to lease or to renew an existing lease which ex-
46 pires December 31 of any year, shall be filed in the office of the director
47 of the department of lands by the thirtieth day of April preceding the date
48 of such expiration. Such applications will be considered by the state land
49 board and be disposed of in the manner provided by law; except that the board
50 may reject conflicting applications for a lease for commercial purposes if

1 the lessee exercises the preference right to renew clause, and provided such
2 right is specified in the lease.

3 (10) Where conflicts appear upon leases, except for mineral leases
4 which, pursuant to chapter 7, title 47, Idaho Code, contain a preferential
5 right to renew clause, such applications shall be considered as having been
6 filed simultaneously. However, nothing herein shall be construed to prevent
7 the state board of land commissioners from accepting and considering appli-
8 cations for new leases at any time.

9 (11) In case improvements have been made on land while under lease which
10 is expiring, and the former lessee is not the successful bidder, but the land
11 is leased to another, the amount of such improvements shall be paid to the
12 former lessee. The following shall be considered improvements: plowing
13 done within one (1) year, provided no crop has been raised on the plowed land
14 after such plowing, fencing, buildings, cisterns, wells, growing crops and
15 any other asset which shall be considered an improvement by the director.

16 (12) Commercial leases of the state lands shall not be subject to the
17 conflict auction provisions of section 58-310, Idaho Code. The board may,
18 at its discretion, consider individual applications or call for proposals
19 and sealed bids by public advertisement, and may evaluate said proposals and
20 award the lease to the bidder whose proposal achieves the highest return over
21 the term of the lease and who is capable of meeting such terms and conditions
22 as may be set by the board; in the alternative, the board may call for lease
23 applications by public advertisement and if more than one (1) person files
24 an application to hold an auction in the same manner as provided in section
25 58-310, Idaho Code. In all cases, the board must obtain a reasonable rental,
26 based upon fair market value of the state land, throughout the duration of
27 the lease. The board may reject any or all proposals and any or all bids, and
28 may reoffer the lease at a later date if the board determines that the pro-
29 posals or bids do not achieve the highest and best use of the land at market
30 rental.

31 SECTION 29. That Section 63-3622XX, Idaho Code, as enacted by Section
32 1, Chapter 86, Laws of 2025, be, and the same is hereby amended to read as
33 follows:

34 ~~63-3622XX~~ 63-3622YY. SMALL SELLER. (1) There is hereby exempted from
35 the taxes imposed by this chapter sales of tangible personal property made by
36 an individual making small sales. A small seller shall not collect or remit
37 any state sales or use tax imposed by this chapter.

38 (2) For purposes of this section, "small seller" means an Idaho resi-
39 dent making sales that do not exceed five thousand dollars (\$5,000) in cumu-
40 lative gross receipts in the current or previous calendar year. It shall not
41 include partnerships, corporations, or limited liability corporations.

42 (3) The exemption provided in this section shall not apply to:

43 (a) Sales of motor vehicles, trailers, all-terrain vehicles, utility
44 type vehicles, specialty off-highway vehicles, motorcycles intended
45 for off-road use, snowmobiles, aircraft, vessels as defined in section
46 67-7003, Idaho Code, alcohol, or tobacco; or

47 (b) Items purchased to be sold or incorporated into items to be sold.

48 (4) A small seller with gross receipts exceeding five thousand dollars
49 (\$5,000) shall within thirty (30) days file with the state tax commission

1 an application for a temporary seller's permit and begin collecting sales
 2 and use tax. No temporary seller's permit shall be issued for a period of
 3 time greater than the remaining calendar year in which sales exceeded five
 4 thousand dollars (\$5,000) for a small seller. The following year, such
 5 seller shall apply for a seller's permit under the provisions of section
 6 63-3620 (a), Idaho Code.

7 (5) A small seller shall indicate on such seller's invoice, if re-
 8 quested by the purchaser, that the sale was exempt from sales and use tax
 9 pursuant to the provisions of this section.

10 (6) A small seller shall not permanently maintain, occupy, or use an
 11 office, place of distribution, sales or sample room or place, warehouse or
 12 storage place, or other place of business or maintain a stock of goods with
 13 anticipation of exceeding gross receipts of five thousand dollars (\$5,000).

14 (7) A small seller may file an application with the state tax commission
 15 for a seller's permit pursuant to section 63-3620, Idaho Code, before such
 16 seller reaches the five thousand dollar (\$5,000) threshold provided in sub-
 17 section (2) of this section.

18 (8) Nothing in this section relieves a small seller from filing indi-
 19 vidual income tax returns for persons who meet the filing requirements under
 20 section 63-3030, Idaho Code.

21 (9) A small seller with sales exceeding three thousand dollars (\$3,000)
 22 annually shall keep such records for not less than four (4) years pursuant to
 23 section 63-3624, Idaho Code.

24 SECTION 30. That Section 67-827A, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 67-827A. POWERS AND DUTIES. The office of information technology ser-
 27 vices is hereby authorized and directed:

28 (1) (a) (i) To control and approve the acquisition and installa-
 29 tion of all telecommunications equipment and facilities for all
 30 departments and institutions of state government, except as pro-
 31 vided in subparagraphs (ii), (iii) and (iv) of this paragraph;

32 (ii) To coordinate the acquisition and installation of all
 33 telecommunications equipment and facilities for the institutions
 34 of higher education and the elected officers in the executive
 35 branch;

36 (iii) To coordinate the acquisition and installation of all
 37 telecommunications equipment and facilities for the legislative
 38 and judicial branches;

39 (iv) Provided however, that the acquisition and installation of
 40 all public safety and microwave equipment shall be under the con-
 41 trol of the military division. The military division is autho-
 42 rized to charge and receive payment for actual and necessary ex-
 43 penses incurred in providing services to any unit of state govern-
 44 ment under the provisions of this subparagraph.

45 (b) In approving or directing the acquisition or installation of
 46 telecommunications equipment or facilities, the office shall first
 47 consult with and consider the recommendations and advice of the direc-
 48 tors or executive heads of the various departments or institutions. Any
 49 acquisition or installation of any telecommunications equipment or fa-

1 cilities that is contrary to the office's direction or is not in harmony
 2 with the state's overall plan for telecommunications and information
 3 sharing shall be reported in writing to the governor and the legisla-
 4 ture.

5 (2) To provide a system of telecommunications for all departments and
 6 institutions of state government. Funds received pursuant to this subsec-
 7 tion shall be appropriated for payment of telecommunications and telephone
 8 charges incurred by the various agencies and institutions of state govern-
 9 ment.

10 (3) To provide a means whereby political subdivisions of the state may
 11 use the state telecommunications system, on such terms and under such condi-
 12 tions as the office of information technology services may establish.

13 (4) To accept federal funds granted by congress or by executive order
 14 for all or any of the purposes of this chapter, as well as gifts and donations
 15 from individuals and private organizations or foundations.

16 (5) To oversee implementation of cybersecurity policies that foster
 17 risk and cybersecurity management telecommunications and decision-making
 18 with both internal and external organizational stakeholders.

19 (6) To consult with and direct state agencies and officials regarding
 20 information security needs.

21 (7) To direct state agencies and officials on penetration tests and
 22 vulnerability scans of state technology systems in order to identify steps
 23 to mitigate identified risks.

24 (8) To direct state agencies and officials to ensure that state agen-
 25 cies implement mandatory education and training of state employees and pro-
 26 vide guidance on appropriate levels of training for various classifications
 27 of state employees.

28 (9) To direct appropriate state agencies to create, coordinate, pub-
 29 lish, routinely update and market a statewide cybersecurity website as an
 30 information repository for intelligence-sharing and cybersecurity best
 31 practices.

32 (10) To ensure that all state agencies implement and maintain cyberse-
 33 curity best practices.

34 (11) To require all state agencies to implement and use multifactor
 35 identification to access information technology devices or services, in-
 36 cluding but not limited to local and remote network access to any email
 37 accounts, cloud storage accounts, web applications, networks, databases, or
 38 servers.

39 (12) To coordinate public and private entities to develop, create and
 40 promote statewide public outreach efforts to protect personal information
 41 and sensitive data from cyber threats.

42 ~~(11)(a)~~ (13) (a) To obtain a criminal history check on prospective em-
 43 ployees and contractors with the Idaho office of information technology
 44 services who provide information technology (IT) services to external
 45 state agency customers and who work in one (1) or more of the following
 46 disciplines:

- 47 (i) IT network engineering;
- 48 (ii) IT operations and support;
- 49 (iii) IT software engineering;
- 50 (iv) Geographic information systems;

- (v) IT information management;
- (vi) IT database administration;
- (vii) IT systems and infrastructure engineering;
- (viii) IT information security engineering;
- (ix) IT architecture;
- (x) IT management;
- (xi) Remote sensing analysis; and
- (xii) Data science.

(b) The criminal history check done pursuant to paragraph (a) of this subsection shall be based on a completed ten (10) finger fingerprint card or scan and shall include, at a minimum, information from the Idaho bureau of criminal identification database and the federal bureau of investigation's criminal history database.

(c) For the purposes of this section, "information technology" shall have the same meaning as provided for in section 67-831, Idaho Code.

~~(12) (13)~~ (14) To promulgate and adopt reasonable rules, subject to legislative approval, for effecting the purposes of this act pursuant to the provisions of chapter 52, title 67, Idaho Code.

SECTION 31. That Section 67-2362, Idaho Code, as enacted by Section 3, Chapter 6, Laws of 2025, be, and the same is hereby amended to read as follows:

~~67-2362~~ 67-2363. USE OF MULTIFACTOR IDENTIFICATION REQUIRED. (1) The legislative branch and its staff, the judicial branch and its staff, and the elected constitutional officers and their staffs shall implement the use of multifactor identification as that term is defined in section 67-831, Idaho Code.

(2) Multifactor identification shall be required to access information technology devices or services as those terms are described in section 67-831, Idaho Code, including but not limited to local and remote network access to any email accounts, cloud storage accounts, web applications, networks, databases, or servers.

SECTION 32. That Section 67-5242, Idaho Code, be, and the same is hereby amended to read as follows:

67-5242. PROCEDURE AT HEARING. (1) In a contested case other than an emergency proceeding held pursuant to section ~~62-5247~~ 67-5247, Idaho Code, all parties shall receive notice that shall include:

- (a) A statement of the time, place, and nature of the hearing;
- (b) A statement of the legal authority under which the hearing is to be held; and
- (c) A short and plain statement of the matters asserted or the issues involved.

(2) At the hearing, the presiding officer:

- (a) Shall regulate the course of the proceedings to assure that there is a full disclosure of all relevant facts and issues, including such cross-examination as may be necessary.

(b) Shall afford all parties the opportunity to respond and present evidence and argument on all issues involved, except as restricted by a limited grant of intervention or by a prehearing order.

(c) May give nonparties an opportunity to present oral or written statements. If the presiding officer proposes to consider a statement by a nonparty, the presiding officer shall give all parties an opportunity to challenge or rebut it and, on motion of any party, the presiding officer shall require the statement to be given under oath or affirmation.

(d) Shall cause the hearing to be recorded at the agency's expense. Any party, at that party's expense, may have a transcript prepared or may cause additional recordings to be made during the hearing if the making of the additional recording does not cause distraction or disruption.

(e) May conduct all or part of the hearing by telephone, video conference, or other electronic means, if each participant in the hearing has an opportunity to participate in the entire proceeding while it is taking place.

SECTION 33. That Section 67-7602B, Idaho Code, be, and the same is hereby amended to read as follows:

67-7602B. FUNDING. The Idaho heritage trust shall receive funds collected in section 49-450, Idaho Code, in the amount of fifty cents (50¢) per plate for the use of the copyrighted design provided in section 49-443~~(10)~~(1), Idaho Code. The Idaho transportation department shall collect such funds and distribute them to the Idaho heritage trust fund quarterly. The role of the heritage trust is to accept proposals from the public requesting funds for heritage preservation projects. The proposals are evaluated on established criteria, and if in the opinion of the heritage trust they qualify, a grant may be awarded subject to the availability of funds. The heritage trust shall insure that the following occurs in respect to the management of funds:

(1) Funds earned from the use of the motor vehicle license plate design shall be deposited directly into the trust fund where it will earn interest that will be used for heritage preservation projects. Contributions from private fund raising efforts may also be deposited to the trust fund.

(2) Only the interest earned from the trust fund shall be expended, and the trust fund shall remain as a permanent endowment generating income in perpetuity for heritage preservation.

(3) The Idaho heritage trust shall require project sponsors to match the funds granted for each project, so that no more than half the monetary support for any project shall come from the proceeds of the trust fund.

SECTION 34. That Section 67-9407, Idaho Code, as enacted by Section 2, Chapter 83, Laws of 2025, be, and the same is hereby amended to read as follows:

~~67-9407~~ 67-9418. REPORTING REQUIREMENTS. (1) For the purposes of this section:

(a) "Agency" means a state agency that is subject to the provisions of section 67-1904, Idaho Code, and that is a licensing authority as defined in this chapter.

(b) "Credible complaint" means an allegation supported by specific facts or evidence that reasonably warrants investigation of a potential quality-related violation or technical violation.

(c) "Quality-related violation" means a disciplinary action that relates to direct consumer harm such as an injury from a practice error or negligence.

(d) "Technical violation" means a disciplinary action that relates to the violation of a specific occupational licensing-related law or rule that does not cause direct consumer harm, such as failing to meet a continuing education requirement, late renewal of a license, or failing to hold certain required insurance.

(2) As part of the annual performance report that an agency is required to prepare pursuant to section 67-1904, Idaho Code, an agency shall, beginning with the fiscal year 2027 report, include the following information separately for each license under its purview:

(a) The total number of licensees as of the last day of the fiscal year;

(b) The total number of new licenses issued during the fiscal year;

(c) The number of new applicants for licensure who were denied licensure during the fiscal year;

(d) The number of licenses renewed during the fiscal year;

(e) The number of licenses that were not renewed during the fiscal year;

(f) The number of credible complaints against licensees during the fiscal year; and

(g) The number of final disciplinary actions against licensees during the fiscal year.

(3) For disciplinary actions reported pursuant to subsection (2) (g) of this section, an agency shall report:

(a) The number and type of disciplinary action taken, reported as a corrective action plan, civil fine, license suspension, license revocation, or other;

(b) The number of related disciplinary actions stemming from technical violations;

(c) The number of related disciplinary actions stemming from quality-related violations; and

(d) For all quality-related violations, a brief, de-identified summary of the violations suitable for the lay public to understand the nature of the case.

SECTION 35. That Chapter 98, Title 67, Idaho Code, as enacted by Section 2, Chapter 107, Laws of 2025, be, and the same is hereby amended to read as follows:

CHAPTER ~~98~~ 99

IDAHO CONSTITUTIONAL MONEY ACT OF 2025

~~67-9801~~ 67-9901. SHORT TITLE. This act shall be known and may be cited as the "Idaho Constitutional Money Act of 2025."

1 ~~67-9802~~ 67-9902. DEFINITIONS. For the purposes of this chapter, the
2 following terms have the following definitions:

3 (1) "Debt" means any public or private obligation, tax or other pub-
4 lic charge, or other provision in any contract, agreement, law, or regula-
5 tion that requires and stipulates the payment of, or by the terms of which is
6 payable in, some medium of exchange, currency, or money.

7 (2) "Entity" means the state of Idaho, corporations, partnerships,
8 trusts, labor unions, and unincorporated associations that reside or trans-
9 act business or other operations within the state of Idaho.

10 (3) "Gold and silver coin" means all such gold and silver coin as are
11 allowable for a state:

12 (a) To "make ... a tender in payment of debts" under the authority re-
13 served to the several states in clause 1, section 10, article I of, and
14 the tenth amendment to, the constitution of the United States; or

15 (b) To employ as its own medium of exchange in the performance of its
16 sovereign governmental functions.

17 (4) "Legal tender" means a medium of exchange, currency, or money that
18 may be offered and accepted for the satisfaction of debts under the laws of
19 the state of Idaho or of the United States, as the case may be.

20 (5) "Person" means all natural persons.

21 (6) "Specie" means:

22 (a) Stamped or imprinted coin having gold or silver content; or

23 (b) Refined gold or silver bullion that is coined, stamped, or im-
24 printed with its weight and purity and valued primarily based on its
25 metal content and not its form.

26 (7) "State" means the state of Idaho and all departments, agencies, of-
27 ficials, and employees thereof.

28 ~~67-9803~~ 67-9903. GOLD AND SILVER COIN AND SPECIE. (1) To the full ex-
29 tent allowed by clause 1, section 10, article I of, and the tenth amendment
30 to, the constitution of the United States, gold and silver coin and specie
31 minted domestically shall be legal tender in the state of Idaho under the
32 laws of this state. The state may also elect to use gold and silver coin and
33 specie in conducting its business.

34 (2) Unless expressly provided by statute or by contract, no person or
35 other entity may compel another person or other entity to tender or accept
36 gold or silver coin or specie unless agreed upon by the parties.

37 SECTION 36. That Section 72-1330A, Idaho Code, as enacted by Section
38 17, Chapter 29, Laws of 2025, be, and the same is hereby amended to read as
39 follows:

40 ~~72-1330A~~ 72-1330B. WORKPLACE MISCONDUCT. (1) "Workplace misconduct"
41 means conduct in connection with employment that willfully disregards the
42 employer's interest, willfully violates the employer's reasonable rules, or
43 disregards a standard of behavior that the employer has a right to expect of
44 its employees.

45 (2) A claimant's conduct disregards a standard of behavior the employer
46 has a right to expect of its employees when the conduct falls below the stan-
47 dard of behavior expected by the employer and the employer's expectation was
48 objectively reasonable. There is no requirement that the claimant's conduct

1 be willful, intentional, or deliberate. The claimant's subjective state of
2 mind is not a relevant factor in determining workplace misconduct pursuant
3 to this subsection.

4 (3) An employer's expectation shall be considered objectively reason-
5 able when it is communicated to the employee or flows naturally from the em-
6 ployment relationship. An expectation that flows naturally need not be com-
7 municated to an employee to be considered objectively reasonable.

8 (4) Mere inefficiency, unsatisfactory conduct, inadvertencies, iso-
9 lated instances of ordinary negligence, good faith errors in judgment or
10 discretion, or failure to meet the performance expectations of the employer
11 because of inability or incapacity shall not be considered misconduct con-
12 nected with employment.

13 (5) Except as provided in section 72-1366(5), Idaho Code, conduct in-
14 volving personal, nonjob-related behavior occurring outside the workplace
15 shall not be considered workplace misconduct in connection with employment.

16 SECTION 37. An emergency existing therefor, which emergency is hereby
17 declared to exist, this act shall be in full force and effect on and after
18 July 1, 2026. The provisions of Section 27 of this act shall be null, void and
19 of no force and effect on and after July 1, 2027.